San Francisco Bay Conservation and Development Commission
375 Beale Street, Suite 510, San Francisco, California 94105 tel 415 352 3600
State of California | Gavin Newsom – Governor | info@bcdc.ca.gov | www.bcdc.ca.gov

February 25, 2025

TO: Design Review Board Members

FROM: Lawrence J. Goldzband, Executive Director (415-352-3653; larry.goldzband@bcdc.ca.gov)
Ashley Tomerlin, Sr. Bay Dev. Design Analyst (415-352-3657; ashley.tomerlin@bcdc.ca.gov)

SUBJECT: **Draft Summary of November 3, 2025, BCDC Design Review Board Meeting**

1. **Call to Order and Meeting Procedure Review.** Design Review Board (DRB) Chair Jacinta McCann called the hybrid meeting to order on Zoom, at approximately 5:00 p.m.

a. **DRB Board Members**. Chair Jacinta McCann, Vice Chair Gary Strang, Bob Battalio, Kristen Hall, Tom Leader, and Stephan Pellegrini were present in person.

b. **BCDC Staff**. Ashley Tomerlin, Katharine Pan, Alyssa Plese and Yuri Jewett were present in person.

c. **Project Proponents**. Liza McNulty, Project Manager, City of Berkeley

2. **Staff Update**. Board Secretary Tomerlin noted the following items:

   a. Shoreline Plants Update. The San Francisco Estuary Institute has been selected as our partner for updating the Shoreline Plants guidance document. Since project is partially funded by the National Oceanic Atmospheric Administration (NOAA) grant, staff is working to fulfill required administrative tasks, in order to complete the contract and begin the work. Project updates will be provided to the Board throughout 2026.

   b. The San Francisco Bay Water Trail gained another launch at Pacheco Marsh near Martinez. The site included the creation of new tidal channels, restored marsh, and miles of trails. An accessible kayak float is now available to the public at one of the largest of the channels.

   c. Regional Shoreline Adaptation Plan update. Staff have received notices of intent from Solano County, San Mateo County, and the City of Alameda. Kickoff meetings will begin next month, and staff will provide updates on the process at a future meeting.

Comment: Chair McCann noted that it would be nice if the Board could see statistics associated with the newly added and expanded public access areas at a future meeting.

3. **Public Comment for Items Not on the Agenda**. There was no public comment.

4. **Berkeley Waterfront and Ferry Pier Review.** The Berkeley Waterfront and Ferry Pier project proposes an electric ferry service located at the Berkeley Marina, in the City of Berkeley, Alameda County. The project proposes demolition of the closed fishing pier and the construction of a new 1,080-foot-long public pier with pedestrian access and a ferry terminal, connected to a 400-foot-long breakwater. The proposal also includes improvements to the surrounding Berkeley Waterfront, including a public plaza, improved site circulation, a Bay Trail extension, parking lot renovations, and new landscaping.

5. **Staff Presentation**. Alyssa Plese provided a staff introduction to the project site and context.

    a. **Board Clarifying Questions following Presentations.**

        (1) Chair McCann asked staff to clarify how the current requirements of the BCDC permit work since the fishing pier is now closed. Katharine Pan, Shoreline Development Program Manager, responded that while the requirement is still there, the pier is closed to the public for safety reasons. The project will most likely require a new permit, and the Board should conduct the review based on the merit of the new design and broader benefits for reestablishing public access on the pier and new transit program.

6. **Project Presentation**. Liza McNulty, Capital Improvement Program Manager for the City of Berkeley provided an overview of the Berkeley Waterfront and the Ferry Pier project with a slide presentation. The presentation focused on the design of the ferry program, including the multimodal access to the shoreline, the plaza, and the pier itself.

    a. **Board Clarifying Questions following Presentations:**

        (1) Board member Battalio asked why the project is designed to accommodate only 1.6 feet of sea level rise, noting that the lower parts of the deck and structural elements will be exposed to waves. He stated that with this level of investment, 1.6 feet doesn't seem adequate. Project proponent responded that the elevation was driven by meeting grades of the plaza and existing roadway. Higher elevations would require significant improvements to meet accessibility codes.

        (2) Board member Battalio asked the project team to clarify if there are any use conflicts between the ferry routes and water recreation such as windsurfing and swimming. Project proponent stated that recreational users launch south of the pier and the City municipal code does not allow swimming or windsurfing within the marina, which is north of the pier, and where the proposed ferry use is to occur. The feasibly study noted that the uses can be separated by the pier itself, and the design currently reflects that.

(3) Board member Battalio asked for clarification of the regulations related to waves created by the ferry that may impact recreational users. Project proponent responded that there are no limits but as ferries approach the terminal, the waves are lessened. More details related to wakes generated for arrival/departure frequency of the ferry service will be discussed with the ECRB.

(4) Board member Battalio inquired if habitat can be afforded by the old pier. Project proponent responded that early consultations with other agencies have occurred. The project proposes demolishing the old pier as needed to construct the new pier. Portions of the old pier will remain in the bay and serve those habitat needs if required.

(5) Board member Pellegrini requested clarification regarding the location of the raised table crossing for the bike lane that flows directly into the plaza. Were other alternatives explored. Project proponent responded that currently the northern crossing is using aprons for the transitions and is open to suggestions.

(6) Board member Pellegrini asked for clarification regarding the scoped improvements to the triangle area. Project proponent responded that the triangle itself needs to be reconfigured to accommodate the bike and bus lanes. It will get narrower and then the actual plantings will become stormwater treatment. They're not public improvements.

(7) Board member Pellegrini asked if there is an advantage to having the bus embarkation on the south side of the triangle. He asked what informed this loading zone area. Project proponent responded that space was the main factor. The buses don't just stop, they layover. It was easier to configure the space on the southern side.

(8) Board member Pellegrini asked if the far point of the pier at the fishing infrastructure it is expected to be accessible 24/7. He also asked for confirmation that there is no control point for pier access except for in the case of an emergency and that the pier is anticipated to be open at all times. Project proponent confirmed that the pier will be open at all times except for emergency access closures.

(9) Board member Pellegrini asked if the breakwater will likely shrink based on the sizing associated with the ferry infrastructure. Will there be one breakwater or two? Project proponent responded that there will be only one breakwater and that the reduction in length is only on the south side and it's related to coastal conditions and how the breakwater operates hydrologically.

(10) Board member Leader asked for clarification of the location of the second ferry terminal. Project proponent responded that it will be located directly behind the

proposed terminal closer to shore.

(11) Board member Hall inquired about parking at the site and what thinking went into ensuring that recreational parking will continue to be available at the site. Project proponent responded that both lots that are proposed for shared use with ferry riders also have heavy use by patrons of the restaurants. The data showed the 7pm peak occupancy so it wouldn't conflict with the ferry riders, which would experience heavy use during business hours. There is no ferry parking proposed for the lots that serve the recreational users at the South Cove or at the Marina.

(12) Board member Hall asked if it is anticipated that the restaurant at the south end will be leased. Project proponent responded that there is no meaningful update to share at this time.

(13) Board member Hall asked if there is an enforcement plan related to all day parking. Project proponent responded that the enforcement will be ticketing, but the management plan will establish time limited and permit parking. Board Member Hall requested clarification about who the permits be available to. Project proponent responded that permits are currently in place for marina slip holders, but the plan is still in development and will require public feedback for what other permits may look like for staff and business owners for example.

(14) Board member Hall asked if the two parking lots proposed will provide sufficient parking for ferry users. Project proponent responded the two lots alone would to not be enough but once combined with parking at Marina Boulevard it should be sufficient.

(15) Board member Hall asked for clarification if the rain shelter on the pier itself would be enclosed on the north side or would it be open. Project proponent responded that only the top of the shelter is covered.

(16) Vice Chair Strang noted that with so many concerns raised in the public comments regarding the parking challenges, he asked for clarification if there is anything that can be added to address the concerns of locals of being displaced. Project proponent responded that there during peak summer weekends there are times when the parking lots are full and that bringing in more ferry riders will impact that. The data is clear that these lots are vastly underutilized. We need to preserve the spots in the lots serving recreation but there are spaces that are currently open and vacant.

(17) Vice Chair Strang asked what the next steps regarding lighting design are. Project proponent noted that the current renderings are not consistent when it comes to lighting. The City still needs to identify the fixtures and the strategy is to focus on safety and not attracting nuisance related to birds. Vice chair Strang followed up

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by asking the current lighting on the pier itself was pole lights. The project proponent confirmed the existing pier has pole lights and they are in continued use. Vice Chair Strang also asked if the pole lights in this area are to city standards or new lights. Project proponent responded that for the pier and plaza there will be new lights, not sure if those lights will carry into the parking lot or if parking area will use city standard.

(18) Vice Chair Strang inquired if there has been any concern that pier will be weathered naturally and if there are any hazardous issues related to that. Project proponent responded that regarding navigational safety - it's been there 100 years so there is not a concern. The City needs to post new signage to prevent the public from getting too close to the pier or try to climb on it. The decking is made of concrete and the piles are a combination of concrete and wood.

(19) Chair McCann asked for clarification for the total number of riders anticipated to be during the day. Assuming riders are traveling round trip than we are accommodating for approximately half that number. Is that correct? Project proponent responded that the approximately 900 riders is already cut in half. WETA anticipates approximately 1800 boardings, round trip would count for two boarding. Ferry parking demand assumes transportation demand management measures where other modes of transit were contemplated for site arrival.

(20) Chair McCann asked about the frequency of the ferry service - is it concentrated during commute hours? What about weekend? Project proponent responded that all the data contained in the WETA Berkeley Ferry business plan, which is a living document. It anticipates every 30 minutes during weekday commute hours, hourly otherwise. Every 60-90 minutes on weekends.

(21) Chair McCann asked if there will be a gap between the new and existing pier that remains. Project proponent confirmed there will be a gap due to constructability.

(22) Chair McCann noted that WETA is an emergency transportation agency, and requested clarification that each of the terminals is contributing toward emergency planning options. Project proponent confirmed that the ferry terminal and plaza are considered essential/critical facilities.

(23) Board member Leader requested clarification for the scope of work for Phase 3 of the project. Project proponent responded that Phase 3 includes an improved Bay Trail that connects the plaza to the southern point of the peninsula, reconfiguring parking lot and creating more spaces.

b. **Public Comment**:

(1) Andrew Sullivan, San Francisco Boardsailor's Association (SFBA). Expressed concern that the project as proposed is replacing a crown jewel of water recreation with a ferry. He noted that the Berkeley marina is an incredible

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destination, and latent demand case study at Albany Bulb. He stated that when agencies want to engage with their users, they do it and they're aggressive in reaching out and including that feedback into design. He felt that the project is not engaging, the input is not informing the design, there is no consensus on the project. He stated that he is not “anti-ferry” but wants to see it done right. He stated that there is an opportunity to leverage the assets and community who want this place to work for everyone, and there is a need to have citizens and users behind the project in an effective.

(2) Kirk Van Moon, resident. Yielded his time to Jim McGrath

(3) Cheong-Tseng Eng, resident. Noted that he used to fish here as a child and currently uses this area to wing foil. Stressed that the project will need to be designed effectively, for people to interact with and use this community space, if we lose that then we lose the heart from the whole area. He mentioned that he hasn’t heard about how Hs Lordships will be used, but that is a heavily used site for a lot of sports, and it is hard to access at low tide and asks that the project team keep that in mind. It is a space for users to congregate after getting out of the water.

(4) Jim McGrath, Save the Berkeley Pier. Noted that he also submitted a letter and asked to Board to review several photos to show the low tide condition near Hs Lordships. He stated that this is the only launch spot that one can get in and out of the water from the southern half of the marina and the location was approved for recreational access from the plan that is in place, but the City continues to restrict access. He noted that this project has been ongoing since 2019 and stressed that there hasn’t been appropriate outreach to the community to the swimmers, anglers, kayakers and many of the new users to the waterfront. He stated that parking continues to be a real issue and that the City states they have new numbers but they are not online or have been sent to interested parties for review. He stated that transparency continues to be a number one issue and questions if what we see is the real project. He shared that he has made Public Records Act requests to several agencies, including BCDC and learned there are substantial changes and stories depending on who you talk to. He noted that there are four different projects that need to be combined and not piecemealed. He would like to see new activity at Hs Lordships restaurant for something that is more economically viable and improved access is possible but the City has been silent on it and we will see it later. He stressed it is the only place that people can get to the water and he will take a hard look at the EIR when it is released.

(5) Tom Colton, Bay Area Sea Kayakers (BASK). Stated his organization conducts free safety classes out of the Berkeley south basin using both the protected areas to practice rescues and then use the fetch outside of protected areas. The classes

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can have anywhere between 15-40 kayakers and they run all day. He stated the classes rely on the proximity to parking since kayaks are heavy, and if all day parking was prohibited, they would not be able to do their all-day workshops. He also noted that he couldn't imagine a ferry passenger would walk half mile and was curious to see the solution for enforcement. He stated this area is an incredible recreation resource that is highly valued and used.

(6) Nicki Chat, swimmer. Stated she seconds Jim McGrath statements regarding swimming off of Hs Lordships, noting that the water access there is less about dabbling and leisure; it is needed for long distance swimmers. She also stated given the emergency provisions here, she is surprised to see that there is not a clear enough space to land a helicopter transport within the park and felt that it could be accommodated within the plaza design. She also expressed that the project should have a planned areas for roosting and nesting opportunities to encourage habitat and sea grass planting.

(7) Jack Appleyard, swimmer. Stated he supports previous commenters regarding the importance of swimming access at south point. He noted that it is a unique spot as it is the only place in East Bay with deepwater access and that other areas are not usable below three feet. He noted that the City seems to regard this as a derelict site and that the outreach needs to be improved.

(8) Camille Antinori, resident. Highlighted that BCDC has a high-level commitment to equitable access to the shoreline and that the City justified the paving of the south lot to improve free, equitable access to the shoreline. She stated that she also submitted written comments related to the Parking Intercept Study, which was a seven-day study broken down by income, the area visited most often by low-income people are the ones being proposed for ferry plan. She expressed concern that the parking plan outcome will drive out the recreation users and the separation of ferry and recreation users isn't clear. She noted that the proposal is to have a $500 annual pass and is not sure how that is equitable to the low-income site users. In general, she stated there is a lot of potential for conflict and inequity with the proposed parking plan. She further noted that the north side of the pier includes recreation uses including small fishing boats, big fishing boats, sport fishing and sail boats.

(9) Julie Allen, resident and swimmer. Stated that she was surprised that the south peninsula is not being discussed this evening and noted that it is a popular launch used by swimmers at low tide. She also stated that she was surprised that the launch is identified as "informal" since been around for decades and identified in the 2003 Marina Plan. She expressed concern that it appears the parking plan reduces recreational parking spaces from 90 to 20 along sea wall drive and that the popularity of recreational use will increase with this project and not decrease. She stated she looks forward to seeing the design for the rest

of the peninsula as it is such an important area for recreational swimmers.

(10) David Sheh, resident and swimmer. Stated that he appreciated the informative presentation, He noted that recreational swimmers are significantly impacted by the development proposed and have not had opportunity to be really involved, with the exception of a focus group that occurred in June, but is only learning this evening that improvements for Seawall drive will be happening further down the road and he expressed concern regarding phasing, noting that once things become more formalized it will be too late to inform changes for Seawall Drive. He requested that there be more transparency for the ferry project and better discussion and engagement with existing users. He concluded that this area is a jewel that should remain accessible to many people.

(11) Lia Willabrand, resident. She stated she is long time user of the Berkeley waterfront as a cyclist, pedestrian, swimmer and dog walker. She agreed with all the previous comments regarding the parking numbers. She expressed concern that the recreational spaces are being turned into a parking lot for a private company.

(12) Sarah Lindsay Anderson, marina slip holder. She stated that she appreciates that the City recognizes the concerns for parking. She also requested future presentations to include more about how the height of the current pier compares to the proposed design and more clarity around the south basin. She also stated that parking should not hinder recreational users, and that proposing limited hours and charging for spaces limits the availability of the waterfront. She hopes that a solution can be found since the waterfront is such an invaluable resource and serves as a great equalizer in an unequal world and the shoreline should not be a commodity.

(13) Laurel H, resident, slip holder and member of water recreation clubs. She stated that she is very excited about the return of the Berkeley pier and she is at the marina every day. She stated that she parks mostly in the M/L lots which will likely be impacted by the proposed plan. She expressed concerns related to operations around parking and the enforcement plan and asked how they will know who is coming in on the ferry and who is there recreationally, for example.

The following written public comments are included at the end of this summary:

- Julie Allen, open water swimmer
- Sarah Lindsay Anderson, Berkeley resident
- Camille Antinori, Berkeley Waterfront and Community Coalition
- Anne Berstein, Berkeley resident
- Keith Chong, Berkeley resident

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- Sebastian Diaz, Berkeley resident
- Daniel Eckhard, San Anselmo resident
- Steve Grue, Berkeley resident
- Pam Johnson, Berkeley resident
- Jim McGrath, Berkeley resident
- David Schnider, optometrist
- Meryle Siegal, Berkeley resident (D1)
- Gordon Stout
- Madison Williams, Berkeley resident

c. **Board Discussion.** The Board discussed the project focusing on the following objectives and questions:

1) The seven objectives for public access are:
   i. Make public access PUBLIC.
   ii. Make public access USABLE.
   iii. Provide, maintain, and enhance VISUAL ACCESS to the Bay and shoreline.
   iv. Maintain and enhance the VISUAL QUALITY of the Bay, shoreline, and adjacent developments.
   v. Provide CONNECTIONS to and CONTINUITY along the shoreline.
   vi. Take advantage of the BAY SETTING.
   vii. Ensure that public access is COMPATIBLE WITH WILDLIFE through siting, design, and management strategies

2) Staff questions:
   i. Does the plaza design effectively direct site circulation between the broader Berkeley Waterfront and the pier? What design enhancements would you propose to accommodate various modes of transportation and circulation leading to embarkation in this one area?
   ii. Does the project design sufficiently balance the needs of existing and future recreational users at the project site and the proposed uses associated with the new ferry terminal?
   iii. Anglers specifically have played a large role in the history of Berkeley Pier. Is the fish cleaning station adequately sited to support this community? Are there additional amenities or design enhancements that should be included to support fishing?
   iv. What design enhancement would you like to see to improve the connection to the shoreline via the proposed University Avenue Class IV bikeway design?

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Summary of Key Issues and Board Comments

Overall Project Configuration

(1) Board member Pellegrini stated that he has questions related to the needs of the recreation users and the access they require, especially given the public concern about recreational access as it relates to long standing availability of parking at this location. He noted he doesn't see issues related to physical public access based on the project design presented thus far and also noted that while free parking is a welcome asset, many public places in the Bay Area find that the way to maximize access can't be done through the delivery of free parking.

(2) Board member Pellegrini noted that the edge condition for this area of the marina doesn't encourage people-centered activity along the shoreline. He noted the existing condition has a lot of passive open space, limited site lines and urbane public access unlike other active and programmed waterfronts, such as Treasure Island. He continued that the existing pier is not usable and accessible from the approach, noting that the lawn and promenades are on the perimeter of parking. He felt that the new plaza design will enhance the existing level of public access but questioned if it is the best approach to maximize usability.

(3) Board member Pellegrini noted that shifting the shoreline road could create larger amounts of open space and public access, and a reconfiguration of the program activities could take place in this location. He highlighted that waterfronts are transitioning from suburban style-restaurant uses to uses that are less reliant on car travel. He also noted that the triangle is "left over" space and could be reconfigured to create additional open space opportunities.

(4) Chair McCann asked Board member Pellegrini to expand on the idea of road reconfiguration to create more shoreline space recreation. She raised concern that a reconfiguration may create less parking, for example. Board member Pellegrini responded that there is so much extra space, it's not clear that those two uses are exclusive. He highlighted the berming of the site and the issues with site lines, and encouraged rethinking the landscape. He noted that the space could be more than accommodating people waiting for the ferry; a greater opportunity for seating or lawn space to picnic to draw people here to participate in new activities that didn't historically happen is possible. He noted that this area is based on a suburban model that is car reliant and this project is an opportunity to rethink that model and allow for new uses. Improving bus access and bike access will create a new opportunity for people to use this area in different way.

Circulation

(1) Chair McCann emphasized that the enhancements to the Class IV bikeway are pretty clear and appreciate the tabletop connection, and the rationale on the bus and loading zones makes sense.

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Sea Level Rise Resilience

(2) Board member Batallio repeated his previous clarifying comment that for a major infrastructure project such as this, only raising the pier 1.6 feet is not acceptable unless there is another constraint like views. He noted that the project will go before the ECRB for further review on the topic, but he emphasized that the project needs a sea level rise adaptation plan.

(3) Board member Hall agreed that the elevation of the pier needs to be designed for a longer horizon, noting there are a number of other ferry terminals in the Bay constructed to a higher elevation and there appears to be enough space for this request to be accommodated by design ramps and stairs to get people up to a higher elevation. She stated that public access and public transportation needs to be resilient.

Programming and Public Outreach

(4) Board member Batallio stated that he was concerned that at both meetings held for the project so far, public comment voiced inadequate outreach to water recreation users.

(5) Board member Hall stated that she was having trouble understanding the public comment related to the fear around the cost of parking. She commented that free parking in the San Francisco Bay Area is a scarce resource and that charging for parking is a way of organizing behavior that facilitates spaces for recreation uses but pricing can be quite sensitive to ensure that parking is affordable for the many people that want to recreate within the Bay.

(6) Board member Hall noted that this is a significant recreational asset and the Board is hearing from the recreation community that their needs are not represented. She felt that the design for the ferry use and parking is being well represented in the drawings, but it is unclear what recreation uses are being planned and designed for since they are not shown. Recreational uses such as swimming and boardsailing represent a community. When those uses are not in the presentation drawings, then it will appear that you're not planning for it. Right now, this feels like a single-minded plan about the ferry and there is a lack of clarity on how the various uses for a transit hub and recreation area will work together. She also stated that there appears to be potential for Hs Lordships to develop into something similar like the Dolphin Club with saunas and facilities serving the recreation groups.

(7) Vice chair Strang agreed with other board members that the amount of public comment raises concern and is a communication issue, noting the challenge to resolve all of these issues for all users. He stated that ultimately this is an emergency transport project and that there needs to be more transparency around that use, emphasizing that this is a safety project, not a development project. He stated the need to create revenue is part of the solution and noted

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that none of the improvements would be possible without WETA's role in the project.

Design Elements and Details

(8) Board member Leader stated that the plaza feels a bit "agitated," and would like to see a more simplistic design. He highlighted the opportunity to create a public promenade along the southern alignment of Seawall drive that connects to the plaza and pier. He would like to see more diverse public activations, public spaces that are linear and have more dignity than parking. He commented that while the presentation was thorough, he has concerns that the design doesn't include the connections to the south and north of the pier. He would like to see these elements better defined in the next review to see how all these design phases work together.

(9) Vice chair Strang noted that the railing at the ferry pier seems well designed, but there needs to be more harmony for all of the elements; the railing, canopy and furnishings appears to be done by different folks. He expressed that there is an opportunity to put more design energy and bring all these elements together so the gates for example won't seem like they an afterthought. He also stated the project will need a lot of lighting and moving forward the design team should pay attention to the right form, quality and colors.

(10) Vice chair Strang noted that trash cans are another key amenity proposed in the design and he highlighted that the city needs to keep them maintained or start a campaign to pack it in, pack it out. If anglers for example use the trash can for that use, it could ruin the experience on the pier for everyone.

(11) Chair McCann agreed with a previous comment to keep the plaza design simple with coordinated furnishings. She encouraged the design team to look at the paving and confirm that the current pattern is the best approach. She noted that keeping the plaza in the foreground compared to the rest of the project is a good idea and also likes the separation of pedestrians and bicycles. She highlights that this the first review and there are a lot of good things in the design now and expects the design to progress the next time it comes before the Board.

(12) Chair McCann noted that the questions regarding the location of the fish cleaning station should be located where the anglers will be concentrated and their feedback should inform this decision.

d. **Chair Summary of Board Comments:**

- The Board would like to see a design proposal more aligned to the **community concerns**, reflecting their input and finding more ways to be effective with key constituents. More specificity on what the City heard from the different user groups and how the project has changed in response.

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- The Board would like to see the elevation of the pier as it relates to **sea level rise** further analyzed and addressed.
- The Board would like to see a more **comprehensive design** that includes the southern peninsula. The drawings should show key recreation points, landscaping, the edge condition and how people may recreate and use the shoreline space.
- The Board will defer to other experts for pricing and reviewing different **parking models** around the Bay, noting that better communication with the public on the issue needs to occur. The Board recognizes that around the Bay paying for parking is becoming more and more the norm. There are some benefits that come from that and they should be explored and communicated.
- Overall, the Board agrees many design aspects for the pier presented are excellent and the design is moving along and elements on the pier need **another round of design development**.

e. **Response by Project Proponent:**

- Liza McNulty, project manager, thanked the Board for the opportunity to present, noting that the project will be back before the Board in Spring 2026. The number one concern we hear from the public is related to parking and how the project will impact parking for the existing waterfront users. We have done a lot of community outreach to existing waterfront users and the public at large, including a real focus on underrepresented communities. She stated they have had focus groups with swimmers and windsurfers, and presentations to the Waterfront Commission, but notes there is more work to do. The team plans to continue engaging with focus groups for the water access improvements. She also noted the parking plan is still in its infancy and it will take more work to reach a consensus and how the work will be phased, highlighting that peak ferry use does not begin on day one. She agreed that a more comprehensive approach is needed and plans to respond to the Boards comments when returning next year.
- Chair McCann stated that this is a significant project, noting that she appreciates the amount of work responded so far related the Board comments in May. She emphasized that the next iteration should show how the project responds to the recreation users, there need to be more clarity there so that the design can advance in a positive way.

7. **Adjournment.** Vice chair Strang motioned to adjourn. Board member Leader seconded the motion. Meeting concluded at 7:39 p.m.

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From: Julie Allen
To: Tomerlin, Ashley@BCDC; Plese, Alyssa@BCDC
Subject: Berkeley ferry/pier project comments
Date: Saturday, November 1, 2025 1:22:28 PM

WARNING: This message is from an external source. Verify the sender and exercise caution when clicking links or opening attachments.

Dear Ashley and Alyssa,

I write with comments about the city of Berkeley's ferry/pier plans in advance of the BCDC's DRB meeting on Monday. I hope you are the correct people to send this to, but if there are others I would be very grateful for your advice.

I am a Berkeley resident (20+ years) and have been a regular marina visitor since before that time. I go by car, bike, and sometimes foot. For the last five+ years I have been a regular swimmer at the marina. I am a member of the East Bay Open Water Swimmers, a group that existed long before I took up open water swimming, with a membership that varies though currently we have 300 folks on our new list (which we started less than three months ago). You will probably hear from other swimmers as we are quite worried about what the ferry project means for our Bay access. There are many other swimmer groups, too, and I hope you will hear from them as well. I've advised the swimmers to attend Monday's meeting and I hope some will.

My worries are that the ferry project, as currently proposed, shows no recreational access at the defunct Hs Lordships site. Though not a formal access point it has been a de facto low tide launch spot for swimmers, paddlers, and wind boarders for decades and it was acknowledged as such in the city's 2003 Marina Plan (which to my knowledge has not been updated). At lower water it is our only launch spot south of the pier as the sailing basin is filled with silt (the entire basin is high if not dry at 0' tide). Swimmers need 3 feet of water, so we launch from Lordships any time the tide tables show less than 3-4 feet of water during any part of our swim.

The city has not reached out to swimmers until very recently, then sporadically, and only after we forced our way to the table. I don't know if other recreational users have been similarly neglected. The initial plans we were shown were -- apparently -- scrapped and now there is no accounting for us. The city has not adequately studied parking needs as evinced by their assertion that current recreational parking will be adequate when 950 daily ferry riders are added to the mix. We are very worried that the ferry project, as it is proposed, will severely curtail recreational access and offerings for this much-used and desperately-needed scrap of coastal access.

Thank you for adding my comments to the record to be considered as the BCDC's DRB reviews the city of Berkeley's plans for the ferry. I am grateful to have the opportunity to attend the meeting on Monday (but must zoom in because of work).

Best wishes,
Julie

Design Review Board
San Francisco Bay Conservation and Development Commission
375 Beale St, Suite 510
San Francisco, CA 94105

Dear Board Members:

I submit this letter to be entered into communications for the November 3 meeting of the Design Review Board.

I believe that you, the BCDC, have jurisdiction over development of the Berkeley Marina, where plans are underway to install infrastructure to start charging for parking in key parking lots on January 1, 2026.

Many residents, waterfront users, and consultants have testified that charging for parking will cause more harm than good. The arguments have been raised that it will burden the lowest-income visitors, hinder affordable participation in waterfront nonprofit organizations, impede access to water sports, cause difficulties downstream for berthers, and cost more money than it generates, yet the plan pushes on. The desire for a quick budget fix is said to justify monetizing the waterfront that has, for a hundred years of its existence, been a freely accessible public resource for the people of Berkeley and the East Bay.

I don't want to speak to those concerns, valid though they are, but to the very idea of a free waterfront, which is a resource in itself. Being an intangible and spiritual resource, this is likely to be overlooked in the calculations of what value can be eked out of the Berkeley Marina's real estate.

When a place like the Berkeley waterfront remains open and freely accessible, it serves as a quiet equalizer in an increasingly unequal world. It offers a shared horizon, one that asks nothing of us except that we show up: to walk, to breathe, to look out across the Bay and feel, for a moment, that we belong to something larger than ourselves. To begin attaching a price to that experience, even in the form of parking fees, is to begin redefining the space from a commons into a commodity, and to send the message that access to nature and beauty depends on one's ability to pay.

In essence, a free public waterfront is not just a stretch of land by the water; it is a public trust, a symbol of collective belonging, and a source of meaning that cannot be measured in dollars. I felt this personally when I left my home in Minnesota and drove 2,000 miles west, with only my dog and a vague plan to settle somewhere in the Bay Area. My search ended almost as soon as it began. My first stop after Truckee was the South Cove East Lot, next to Roaming Bean Coffee

and Cal Adventures. The moment I stepped out and saw the shimmering ocean, the San Francisco skyline, the flowers in bloom, and the windsurfers and sailors zipping around, I knew I had found my place. Within months, I purchased a 30-foot sailboat and made the Berkeley Marina my home, “where the heart is”: the place where I sail, work on my boat, and find restoration almost every day. And whenever the projects and stresses of daily life begin to pile up, I return to that same spot by Roaming Bean and dive in.

Thus, when I think about what it means to preserve free public access to the Berkeley waterfront, I return to the words of Wallace Stegner in his 1960 letter to the University of California’s Wildland Research Center in Berkeley. He described how we need wilderness in places like these not just for the usefulness they provide, but because they offer something deeper, something that steadies the human spirit:

“These are some of the things [the waterfront] can do for us. That is the reason we need to put into effect, for its preservation, some other principle than the principles of exploitation or ‘usefulness’ or even recreation. We simply need that wild [expanse] available to us, even if we never do more than drive to its edge and look in. For it can be a means of reassuring ourselves of our sanity as creatures, a part of the geography of hope.”

The waterfront’s value to the spirit of Berkeley is immeasurable. I urge you to step in to keep it free and accessible to all.

Sincerely,
Sarah Lindsey Anderson

Sarah Lindsey Anderson
2111 Eighth St
Berkeley, CA 94710
SarahLindseyAnderson@icloud.com

From: Camille Antinori
To: Tomerlin, Ashley@BCDC; Daysog, Anthony@BCDC; Goldzband, Larry@BCDC
Subject: Public comment for Berkeley Pier and Ferry Terminal Project; First Pre-Application Review - 11/3/25
Date: Friday, October 31, 2025 3:23:27 PM
Attachments: parkingreport.pdf
EIRscopingcommentsBWCC-May19-2025.pdf
BCDCreport.pdf

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2610 McGee Avenue
Berkeley, CA 94703
October 31, 2025

Design Review Board
San Francisco Bay Conservation and Development Commission
375 Beale St, Suite 510
San Francisco, CA 94105

Dear Board Members,

We would like to submit the following comments and materials into the communications for the November 3 meeting of the Design Review Board to discuss the Berkeley Waterfront and Ferry Pier project, agenda item 4.

In the June 24, 2025 meeting, the Berkeley City Council adopted a resolution to install pay stations in selected parking lots of the south waterfront of the Berkeley marina. Council voted unanimously despite a large public response against the plan in the short lead-up between announcement and council vote. We can provide communications from at least 540 Berkeley residents as part of the public record. The stated rationale was revenue generation to relieve the Marina Fund. Evidence does little to support this statement. Parking management in Berkeley is usually *at best* revenue neutral and is primarily for demand management. The documents provided to Council for this parking proposal did not include costs until the last hours before the council meeting (see presentation), did not include enforcement costs in later documents and therefore overstate net revenue. Earlier city estimates of general parking in the marina should a ferry plan be adopted show *zero* net revenues. The concern we raise goes far beyond just a fear of "losing free parking," as city staff have characterized the opposition in public meetings, to issues of practicality and access to the shoreline for visitors of all

socioeconomic backgrounds.

We therefore submit information that illustrates an equity issue for installing the pay stations, which we argue would discourage equitable access to the coastline in contradiction to BCDC's mission to assure coastline access in the Bay Plan, Part IV. The inequity would be most palpable within the exact lots proposed for the pay stations.

We obtained, under the Public Request Act, raw data from an in-person intercept study conducted by Kittelson and Associates (see section 7 of Appendix A) as part of a transportation demand management study for the Berkeley ferry proposal. We would like to present our preliminary analysis, as it bears on the agenda item at hand. In the attachment, you will find a set of tables where we have used the same information collected by Kittelson but organized in ways not available in their report. Key highlights regarding equity concerns:

- The proposed fee lot, J&K, has the highest percentage (40%) of visitors earning less than $75k than any of the other lots, except for two nearby south lots, Seawall Drive (52.7%) and the Skates/N lot (50%), which would likely be impacted by the fees charged in J&K (Table 2).

- Another proposed fee lot, South Cove West, has one of the highest percentages of visitors (36.9%) who earn <$75k (Table 2).

- Visitors in the lowest income category are most likely to park at South Cove West, a proposed fee lot (Table 3).

- Visitors in the next to lowest income category ($25,000-$49,999)) are most likely going to park in O Lot, another lot in the south area which will be impacted by paid parking in the nearby South Cove and J&K lots.

- South Cove East, a proposed fee lot, attracts visitors with higher incomes than does South Cove West, but, as in South Cove West and J&K, visitors to this lot often cannot easily switch to taking a bus because of the watersports or fishing equipment they carry, as seen in the photo below. The same applies to Bay swimmers and other users, who often need a quick way to leave once they exit the chilly waters.

The southern area of the waterfront in aggregate tends to attract a lower income level compared to the northern area (Figure 1 of attached report).



The data corroborates a Placer AI analysis[1] we obtained through the Save the Pier nonprofit organization. Based on thousands of observations, the report found that the south area of the waterfront receives visitors with lower median incomes than Berkeley's median household income of $104,716[2] and compared to the northern waterfront area. Visitors to the south waterfront tend to be more nonwhite, older, and less educated than visitors to the north waterfront area.

Other Berkeley policy actions seek to promote equity in the marina. The July 8, 2025 item 11 of the consent calendar for the Berkeley City Council meeting, offering a rationale for repaving the South Cove West lot, said *"This free public resource that provides enhanced equitable access to the waters of San Francisco Bay is in desperate need of renovation."* The rationale for repaving was *equitable access* to a *free public space*. West and South Berkeley, which are most proximate to waterfront open space, have been designated by the City of Berkeley as Berkeley's Equity Zone.

Section 7 of Appendix A in the Kittelson study shows that the highest frequency of Marina visits is "a few times a week," which is of such frequency that perhaps an annual parking would be considered. However, the City of Berkeley is proposing a $500 annual pass for the fee lots, costing more than a year's membership at the local volunteer-run nonprofit Cal Sailing Club (a community-based organization under BCDC), which provides low-cost access to watersports traditionally out-of-reach to many area residents.

The preliminary results raise questions: Why were these lots chosen for fee charges?

Why was there so little public input sought for developing this plan? Do Marina officials plan non-enforcement, as is the practice with the current Genentech ferry service parking, which was to be directed to other lots, as well as the all-day slipholder lots H&I? Why such a costly annual pass fee? Is this a peremptory implementation of the Kittelson report's suggestion (Section 3.4.5 and page 31) to charge all visitors for parking in order to reduce parking conflict with the proposed ferry, when the ferry plan has not been approved? If the pass were intended to deter potential ferry patrons from parking in these lots, it completely deters current recreational visitors of all but the highest income levels. Paid parking at this public resource, the Berkeley waterfront, would curtail visits from low-income groups. It is therefore a regressive policy. Several actions noted in our comments to the call for Environmental Impact Report scoping (attached) over the past 10 years have in fact served to reduce baseline recreation. We argue that this dampened visitation should not be the baseline scenario. Charging fees in these proposed lots would have the same effect.

We urge the Design Review Board to consider the impact of these proposals on the long-term vibrancy and accessibility to the public of this coastline jewel in light of this information. Ask Berkeley to provide more information on their intentions for the proposed parking plan. For parking at the marina, align with equity goals both of BCDC and prior Berkeley initiatives in these parking lots. Be responsive to public input. The proposed plan fails to assist Berkeley with revenue relief. At the same time, it strikes a blow to equitable access to the Bay's shoreline public resources.

We will continue to develop analysis and would be happy to share additional future research.

Thank you,

Camille Antinori
On behalf of Berkeley Waterfront and Community Coalition, a small nonprofit under the auspices of Berkeley Partners for Parks, seeking to build community awareness at the Berkeley waterfront

Attachments:

- Parking analysis, October 2025
- BWCC public comment for Berkeley Pier-Ferry Environmental Impact Report scoping call

[1] Place.ai is a location intelligence and foot traffic data software company - please let me know if you cannot access and I can provide the report.

[2] According to US Census QuickFacts.

Berkeley waterfront visitation by vehicle: Preliminary parking analysis focusing on household income of visitors

Camille Antinori

October 31, 2025

Below is a set of tables we derived from in-person survey data collected by Kittelson and Associates, Inc. The City of Berkeley hired this consulting firm to conduct a parking demand management study to assess impacts of the proposed ferry project on current and future recreational use. The intercept survey was conducted on three Thursdays and two Saturdays between April and August 2025. Setting aside any issue with methodology, we have cleaned and organized the available data to better illustrate the diversity of visitors to the Berkeley waterfront as compared to the consulting report. The original dataset had 459 observations. We used 330 observations that had complete information for household income brackets. Refer to p. 12 of the Kittelson report for a map of the waterfront and lots. The lots slated for new parking fees via pay stations and annual passes are: South Cove West, South Cove East and J&K lots.

This is a work in progress. Please let us know any questions about our results and comments for future work. Below you will find:

- Table 1: Parking Lot Visits by Income (Counts)
- Table 2: Row Percentages (% within each lot)
- Table 3: Column Percentages (% within each income group)
- Visitation to south v. north areas of waterfront, by income (Figure 1: Visitor Income by Waterfront Area)
- Reclassification of "other"

Table 1: Parking Lot Visits by Income (Counts)

	$0-$24,999	$25,000-$49,999	$50,000-$74,999	$75,000-$99,999	$100,000-$124,999	$125,000-$149,999	$150,000-$174,999	$175,000-$199,999	$200,000 and up	Sum
199 Seawall Drive	1	2	1	4	1	1	1	0	1	12
D&E	1	0	0	0	3	0	1	0	0	5
F&G	1	2	0	0	3	1	1	1	1	10
H&I	0	0	2	3	0	0	0	0	2	7
J&K	2	0	4	2	1	3	0	0	3	15
L&M lot	0	2	4	1	3	0	3	2	1	16
Launch Ramp (Paid)	0	1	1	2	0	0	0	0	2	6
Marina Blvd	6	3	2	1	5	3	3	5	5	33
O Lot	1	6	6	5	4	0	1	2	8	33
Other (please specify)	2	2	4	3	5	2	1	2	2	23
Seawall Drive (Street)	5	1	4	4	2	1	1	0	1	19
Skates/N Lot	4	1	5	2	1	1	1	1	4	20
South Cove East	2	1	4	3	0	3	5	5	6	29
South Cove West	8	1	5	3	5	5	5	0	6	38
Spinnaker Circle	2	2	5	1	8	0	0	3	3	24
Spinnaker Way	3	2	8	5	7	3	3	1	8	40
Sum	38	26	55	39	48	23	26	22	53	330

This table answers the question: Of people parking at each lot, what % are in each income bracket? Seawall Drive and South Cove West have most lowest-income (<$25k) income visitors. J&K lot next to the baitshop sees a high number of those earning less than $75k, as does L&M which was halved in size by the parking enforcement department, and H&I. J&K and South Cove West are slated for marina parking fees.

Table 2: Row Percentages (% within each lot)

	$0-$24,999	$25,000-$49,999	$50,000-$74,999	$75,000-$99,999	$100,000-$124,999	$125,000-$149,999	$150,000-$174,999	$175,000-$199,999	$200,000 and up	Total
199 Seawall Drive	8.3	16.7	8.3	33.3	8.3	8.3	8.3	0.0	8.3	99.8
D&E	20.0	0.0	0.0	0.0	60.0	0.0	20.0	0.0	0.0	100.0
F&G	10.0	20.0	0.0	0.0	30.0	10.0	10.0	10.0	10.0	100.0
H&I	0.0	0.0	28.6	42.9	0.0	0.0	0.0	0.0	28.6	100.1
J&K	13.3	0.0	26.7	13.3	6.7	20.0	0.0	0.0	20.0	100.0
L&M lot	0.0	12.5	25.0	6.2	18.8	0.0	18.8	12.5	6.2	100.0
Launch Ramp (Paid)	0.0	16.7	16.7	33.3	0.0	0.0	0.0	0.0	33.3	100.0
Marina Blvd	18.2	9.1	6.1	3.0	15.2	9.1	9.1	15.2	15.2	100.2
O Lot	3.0	18.2	18.2	15.2	12.1	0.0	3.0	6.1	24.2	100.0
Other (please specify)	8.7	8.7	17.4	13.0	21.7	8.7	4.3	8.7	8.7	99.9
Seawall Drive (Street)	26.3	5.3	21.1	21.1	10.5	5.3	5.3	0.0	5.3	100.2
Skates/N Lot	20.0	5.0	25.0	10.0	5.0	5.0	5.0	5.0	20.0	100.0
South Cove East	6.9	3.4	13.8	10.3	0.0	10.3	17.2	17.2	20.7	99.8
South Cove West	21.1	2.6	13.2	7.9	13.2	13.2	13.2	0.0	15.8	100.2
Spinnaker Circle	8.3	8.3	20.8	4.2	33.3	0.0	0.0	12.5	12.5	99.9
Spinnaker Way	7.5	5.0	20.0	12.5	17.5	7.5	7.5	2.5	20.0	100.0

Of people in each income bracket, what % park at each lot? The lowest income group (<$25k) most often parks in South Cove West (slated for marina parking fees).

Table 3: Column Percentages (% within each income group)

	$0-$24,999	$25,000-$49,999	$50,000-$74,999	$75,000-$99,999	$100,000-$124,999	$125,000-$149,999	$150,000-$174,999	$175,000-$199,999	$200,000 and up
199 Seawall Drive	2.6	7.7	1.8	10.3	2.1	4.3	3.8	0.0	1.9
D&E	2.6	0.0	0.0	0.0	6.2	0.0	3.8	0.0	0.0
F&G	2.6	7.7	0.0	0.0	6.2	4.3	3.8	4.5	1.9
H&I	0.0	0.0	3.6	7.7	0.0	0.0	0.0	0.0	3.8
J&K	5.3	0.0	7.3	5.1	2.1	13.0	0.0	0.0	5.7
L&M lot	0.0	7.7	7.3	2.6	6.2	0.0	11.5	9.1	1.9
Launch Ramp (Paid)	0.0	3.8	1.8	5.1	0.0	0.0	0.0	0.0	3.8
Marina Blvd	15.8	11.5	3.6	2.6	10.4	13.0	11.5	22.7	9.4
O Lot	2.6	23.1	10.9	12.8	8.3	0.0	3.8	9.1	15.1
Other (please specify)	5.3	7.7	7.3	7.7	10.4	8.7	3.8	9.1	3.8
Seawall Drive (Street)	13.2	3.8	7.3	10.3	4.2	4.3	3.8	0.0	1.9
Skates/N Lot	10.5	3.8	9.1	5.1	2.1	4.3	3.8	4.5	7.5
South Cove East	5.3	3.8	7.3	7.7	0.0	13.0	19.2	22.7	11.3
South Cove West	21.1	3.8	9.1	7.7	10.4	21.7	19.2	0.0	11.3
Spinnaker Circle	5.3	7.7	9.1	2.6	16.7	0.0	0.0	13.6	5.7
Spinnaker Way	7.9	7.7	14.5	12.8	14.6	13.0	11.5	4.5	15.1
Total	100.1	99.8	100.0	100.1	99.9	99.6	99.5	99.8	100.1

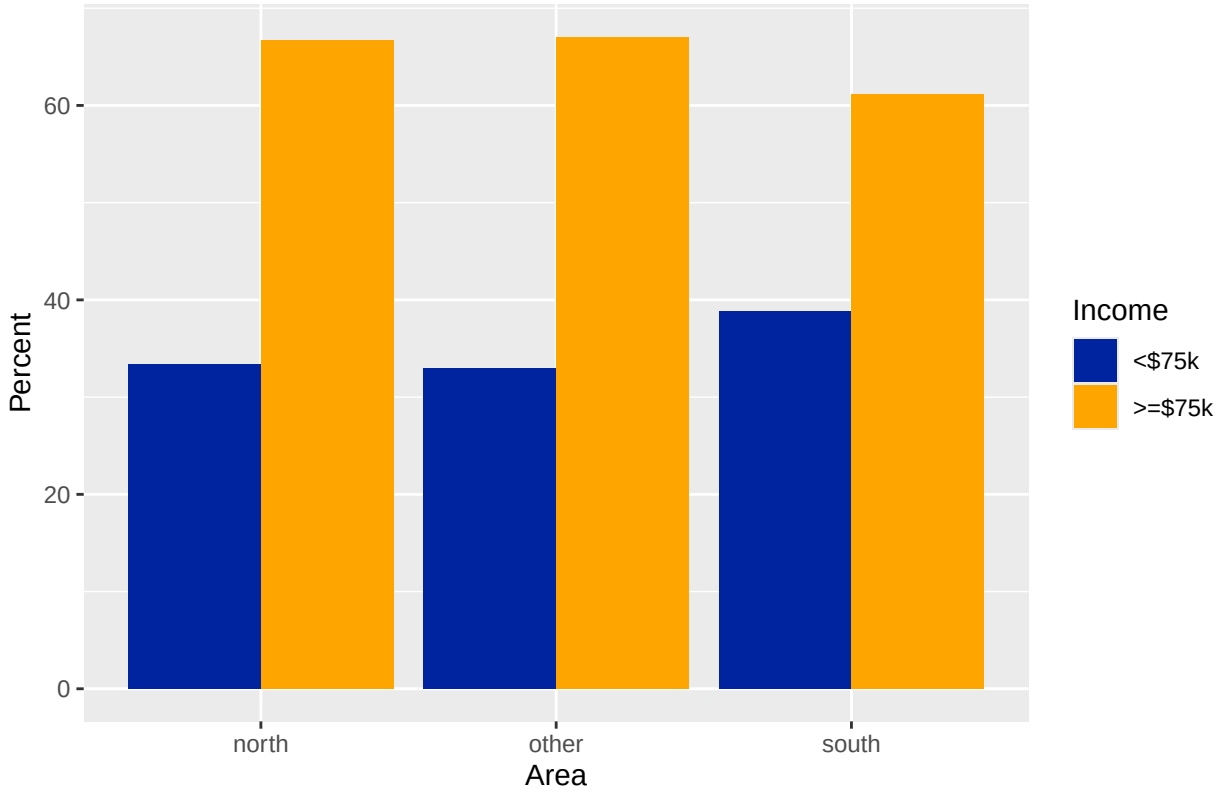
Visitation to south v. north areas of waterfront, by income

Consistent with the public's general understanding and earlier city-led focus groups, we define the waterfront's geographic areas as follows:

- "South" refers to South Cove East and West lots, J&K, L&M, Skates/N, O lot, and Seawall Drive. Data points from the 199 Seawall next to the derelict HsL restaurant in the south part of the waterfront are currently not included as the lot's gates are usually locked during the weekdays on which the respondents' data, indicating the data may be in error. We are seeking clarification from city staff and will update as we receive more information
- "North" refers to D&E, the launch ramps, Spinnaker Way and Spinnaker Circle.
- "Other" includes any response not in "north" or "south" above.

The barchart below indicates a tendency for the south area in aggregate to attract lower income visitors more than other parts of the waterfront. While north and other have similar breakdowns of lower income (defined as <$75) and higher income (defined as >=$75k), the south area has more lower and less higher income as a percentage.

Figure 1: Visitor Income by Waterfront Area



Reclassification of "other"

Forty-six of the Kittelson survey responses were classified as "other." On closer inspection, we recognized that many of these responses are easily reclassifiable to a lot under study. A few should not be part of the analysis because respondents said they biked to the waterfront the day they were intercepted for an interview. Below is how we have reclassified some of these observations so far.

- South Cove West
  - "Cal Sailing"
  - "West cove"
  - "West coast"
  - "Over by cal sailing, not sure which one of those listed this is"
- O Lot
  - "1 Seawall Drive, Gate O Dock"
- 199 Seawall Drive
  - "Upper HSL"
- South Cove East
  - "EAST COVE"
  - "next to new toilet bldg/CAL adventures"
- Seawall Drive (Street)
  - "seawall"
- Skates/N
  - "Skates"
- F&G
  - "F Marina"

Date: **May 19, 2025**
To: **Liza McNulty, PE, Project Manager**
City of Berkeley, Parks, Recreation and Waterfront Department
2180 Milvia, 3rd Floor
Berkeley, California 94704
From: **Berkeley Waterfront Community Coalition**
Re: **Berkeley Water Transportation Pier Ferry EIR Scoping Comments**

Berkeley Waterfront Community Coalition is a nonprofit organization formed under the auspices of Berkeley Partners for Parks, a 501(c)3 organization. Its founding members are motivated by the diversity and range of stakeholders in the waterfront who nevertheless have few channels of shared communication for supporting this unique urban shoreline. BWCC's mission is to develop projects that raise awareness of these stakeholders, enhance a sense of community, and support the waterfront's role in providing value as affordable public access to blue- and greenspace amenities to the region. Below we submit comments in response to City of Berkeley's (COB) Notice of Preparation and Scoping Meeting Environmental Impact Report for the Berkeley Water Transportation Pier Ferry (NOP), dated April 18, 2025, in which COB is the lead agency and the Water Emergency and Transportation Authority (WETA) is the responsible agency under the proposal. In these comments, we also reference the City of Berkeley Public Tidelands Area Project, aka the Waterfront Specific Plan (WSP), for commercial redevelopment and recreation in the same area as the ferry project.

Overview of concerns

The Berkeley marina has long been a waterfront agora and mecca for city residents and visitors seeking to use and enjoy its singular mixture of natural and human resources. It draws a range of people of widely divergent economic means from Berkeley, neighboring cities, and afar. All seek respite and recreation options in this local and regional gem. Projects proposing major changes to the area's physical and social landscape must undergo rigorous debate about impacts, costs, and benefits affecting both built structures and the cultural and human environment. In view of this, the EIR must thoroughly and rigorously assess the physical, cultural and human environmental impacts of the proposed new Berkeley pier and ferry service, expected to serve around **915 passengers departing per day** (about 0.7% of the Bay Bridge vehicular traffic), with its attendant facilities, including parking. In particular, the scope of the EIR must characterize the individual and cumulative effects of a dual construction (pier plus ferry facilities) on equitable access by the public, capital infrastructure and ongoing costs for Berkeley/Alameda County residents, **constriction of the marina's limited parking** options, impacts on sustainable fishing and recreational boating, other environmental

impacts and overall utility to the people who use the marina. The scoping should thoroughly consider alternatives to the proposed WETA ferry, including **smaller ferries**, **inside-marina docking**, and **no ferry at all**. It must clearly evaluate the human and environmental impacts of turning the marina into a **transportation hub for a limited population,** versus reconstructing the pier to enable the Berkeley waterfront to serve as a park unique to the Bay Area.

The outline of comments below is as follows:

1. Impact on social equity and cultural resources
2. Baseline conditions must be with pier and without ferry
3. Impact on recreational and subsistence fishing
4. Fish habitat
5. Dredging for WETA ferry project is new dredging
6. Characterization of alternatives
    a. Alternative 1: Ferry dock inside Marina
    b. Alternative 2: Smaller scale ferry
7. Impact of tree removal
8. Ferry parking management
9. Bird nesting and feeding grounds
10. Economic factors to contextualize project impact
11. Compatibility of electrification and emergency service

1. Impacts on social equity and cultural resources

The Berkeley Pier has long standing cultural significance for Berkeley. Since it was closed to ferries in 1937, it has been a focal point for recreation and an important, low-cost asset for many visitors. The Berkeley Fishing Memories Oral History Project documents intergenerational and community connections to the outdoors as experienced at the pier and waterfront by Berkleyans and frequent visitors. It reveals how people have experienced and appreciated the recreational pier and waterfront as "Berkeley's backyard," connoting a low-cost, welcoming, relaxed atmosphere where children and adults enjoy the outdoors in a relatively safe space, for almost 90 years. This use of this space is historical and current. For Berkeley, Alameda County, and beyond, the pier and Berkeley Marina area are integral to **low-cost public access to bluespace.** Among other data, the Kittleson parking study (p. 42) across lots in the waterfront area underscores the socioeconomic diversity of current Berkeley waterfront visitors. Forty-seven percent reported earning *below* the median household income for Berkeley of $108,558 (https://www.census.gov/quickfacts/fact/table/berkeleycitycalifornia/PST045224).

Science increasingly shows the positive impacts of regular bluespace exposure on mental and physical health (Gascon et al. 2017, Pouso et al. 2021, Sturm and Cohen 2014, While et al. 2020). As the **only urban shoreline** in Berkeley, it provides a crucial, inclusive center for public recreation, relaxation, interaction, and growth through **multiple educational and sport-related resources located at the Marina.** Further, it provides these benefits to historically underserved communities and low- and middle-income users who have fewer means to travel to other coastal areas for shoreline access.

While the NOP notes maintaining public space access as an objective, related COB and WETA project documents and considerable COB Parks Department staff time has focused on the needs of the proposed ferry service as the primary objective, with recreation secondary. For example, during the course of WETA ferry project negotiations, **funds earmarked for waterfront and marina infrastructure have been diverted to the ferry project at the expense of maintaining existing recreational amenities.** Further, basic, long-standing facilities central to the waterfront and marina's success as a bluespace public good – e.g. the failing seawall along the Bay Trail bike path in front of the area's two sailing clubs and docks, the recreational east dock in the South Cove, and the watersports launch at Hs Lordship's cove – have been allowed to deteriorate and/or be shuttered. As of May 1, 2025, the COB has laid off its waterfront security monitors, making recreational usage **less safe and secure.** These monitors cost $100,000/year.

These points also illustrate overlaps in project scope between the ferry project and the WSP. The spatial, policy and operational requirements of the ferry service impede affordable recreational opportunities, as noted in the parking studies, as would a WSP design focus to attract mainly ferry patrons. Data shows that riders in the WETA ferry system tend to be high-income. Serving the high-income segment of population while lessening services to others will transform the waterfront's value as a cultural and affordable public bluespace recreational resource into a transportation hub supporting mainly a high-income ridership profile.



Figure 1: Image of east dock in South Sailing Basin, closed in February 2025. Cost of repairs estimated at $250,000 are unfunded.

The EIR itself should consider that the proposed facility would be the **only WETA ferry terminal in the WETA system within a long-standing nature-based public park** where water-land recreation is an interconnected and highly-prized amenity. Compare this concept to the locations of other WETA ferries:

- Alameda/Oakland ferry – within Oakland's Inner Harbor and shipping lanes for Port of Oakland, next to barge docks and naval ships
- Mare Island and Vallejo terminals – built in an unused location around Mare Island naval base and shipyard within the Mare Island Strait at mouth of Napa River. The land has long been dominated by housing development and the naval base.
- South San Francisco – by an industrial location within an existing Marina near the airport
- Richmond – site of former Ford factory and WWII shipbuilding site
- Alameda Seaplane Lagoon – within a decommissioned naval base
- Harbor Bay – the terminal serves the housing development and businesses around Bay Farm Island that closely abut the shoreline
- San Francisco terminals – at preexisting marine terminals and piers within industrial sites

At none of these ferry terminals is fishing, swimming, sailing, boating, and other windsports a dominant activity on the water as they are at the Berkeley waterfront. **Those venues are already environmentally degraded:** a large-scale ferry there does not displace the pattern of park usage in "Berkeley's backyard," nor add substantially to environmental damage. As currently conceived, the Berkeley pier-ferry plan attempts to

allow for recreation with what would be the only intentionally dual-use pier in the WETA system. Unfortunately, many of the project elements listed are **incompatible with existing patterns of recreation.**

The Bay Conservation and Development Commission (BCDC) incorporates into its goals and mission **social equity in shoreline public access** (BCDC, 2020). In October 2019 the agency amended the SF Bay Plan to incorporate issues of cultural diversity of the waterfront and environmental justice considerations into its policymaking process (Adapting 2019, BCDC 2019, Wasserman 2019). See in particular the BCDC SF Bay Plan (https://bcdc.ca.gov/plans/sfbay_plan.html) under Major Proposals (4), Recreation: Findings (b) (w), Recreation: Policies (1), (9), Public Access: Findings (b), Environmental Justice and Social Equity: Findings (g), Policies (3).

EIR scoping input: **BCDC policy requires protection of existing and future recreational uses and consideration of social equity.** As the proposed ferry is the only terminal in the WETA system to be located in a primarily recreational park, the only waterfront park in Berkeley, mandated as a recreational area by BCDC, the EIR must rigorously assess the cumulative and distributional impacts of these overlapping WETA ferry and WSP projects and **their ultimate impact on the waterfront as a cultural feature and affordable recreational resource, including loss of affordable bluespace recreation, both existing and future**. Specific items may include:

- *The EIR must acquire and present data on socioeconomic characteristics across all current and expected future visitation modes (via car, public transit, bike, walking) and recreational uses to the area and examine if the cumulative impacts of the proposed WETA ferry project and the Waterfront Specific Plan would "gentrify" the area such that affordable and inclusive access to green and bluespace recreation is impeded.*
- *In doing so, the EIR must identify increased costs and access barriers in terms of, for example, recreational space and amenities, recreational services, parking, access to the shoreline and water areas, and level and scope of commercial services.*
- *The EIR analysis must examine the consistency of the overall plans with BCDC policy on social equity in coastal recreation.*
- *The EIR must demonstrate that COB waterfront and park staff who maintain the area have the capacity and the directive to maintain low-cost recreational assets across areas located in the WSP and the ferry plan. As it stands, it is unclear that the COB has a sound plan to manage diverse recreational activities and public access for the life of the ferry project.*

2. Baseline comparison must be recreational demand at waterfront *with* pier and *without* ferry

City staff have indicated that the baseline for comparison is the status today of the waterfront area and pier. However, COB closed the pier in 2015 after a long history of popularity and high usage. Subsequent to closure, the city has made no new capital investments to maintain walkways, seawalls, or adjacent parking lots around the shoreline or pier. Around 2017, COB began negotiations with WETA for a ferry terminal, reviving talks reflecting a 2008 proposal to place a WETA ferry terminal at the location. Hs Lordships Restaurant closed in 2018 and remains derelict. D&E docks have been removed. While there is still extensive usage of the waterfront despite 10 years of minimal maintenance, the **feasible baseline activity should be usage of a reopened pier (to 2000' or 3000') on par with its length prior to closure,** not baseline usage after 10 years of the waterfront area falling into disrepair during COB-WETA negotiations.

Research and reports indicate a large increase in public demand if the pier were reopened and a basic functional facility maintained:

- Ken Jones, chronicler of pier fishing in California, states: "If a survey had been done over the past twenty-five years as to the most visited pier in the Bay Area, the winner undoubtedly would have been either the pier at Pacifica or this pier in Berkeley" and "For availability, transportation, ease of fishing, and facilities, Berkeley was hard to beat" (https://www.pierfishing.com/berkeley-pier/).
- Before its closure, Hs Lordships Restaurant was heavily used as an event space for large groups (e.g. school proms, Berkeley Public Schools Fund annual fundraiser, family reunions, etc.). Reviving the venue may see similar increases in demand, since few large event spaces at affordable prices exist in Berkeley.
- If the pier were reopened under the baseline condition of a somewhat shorter 2000' without the ferry, an economic valuation study by Antinori et al. (2025) predicts almost double the visitation rate for fishing over future expected visits to the shoreline along Seawall Drive.

COB 2021 states that replacement solely of the pier with a 2000-foot pier would cost $26 million, and to 3000 feet, around $32-$44 million. City staff have indicated in public meetings that COB's share of the waterside costs alone for the pier/ferry project would be approximately $26 million. Therefore, a 2000-foot reopened pier facility alone, without a ferry, is a reasonable baseline, as it is the opportunity cost of the WETA/COB pier/ferry project. Even as WETA and COB update all cost estimates to 2025 dollars across all projects, as long as all costs scale relatively equally, this fact would remain.

EIR scoping input:

The EIR must take as a baseline the following conditions: Estimates of level and range of usage for recreation and other non-ferry visitation should the original pier be retrofitted/replaced and reopened to a length of 2000', and with at least the following baseline amenities repaired/reopened:

- *Tenant activity for Hs Lordships location*
- *Street and walkway repair of Seawall Drive*
- *South Cove East Dock repaired*
- *D&E dock replaced*

In doing so, the EIR must clarify whether the proposed ferry terminal and ~500' pier with ~500 foot pier extension adequately accommodates historical, existing and future expected recreational usage as compared to at least a 2000' pier with the amenities listed above.

3. Impact on recreational and subsistence fishing

Before its closure in 2015, the pier was one of the most popular fishing venues in the Bay Area. It hosted fishing derbies like the "mudfish" and kids' fishing derbies. Closure eliminated or displaced this activity to other piers. Fishers continue to visit the area along the shoreline (which requires a license) as opposed to pier fishing, which does not. According to a recent survey analysis from 2021 to 2023 (Antinori et al. 2025), 77% of a random sample of shoreline anglers fished in Berkeley prior to COVID, implying a long association with the area, and 61% said they prefer to fish in Berkeley in comparison to other locations. In addition, 55% reported fishing for consumption needs. Other locations like the piers in Pinole and Antioch are not substitutes for fishing at Berkeley but appear to be complementary assets, with fishers traveling north and south along I-80 (Antinori et al., 2025, p. 23) to these fishing spots.

Because pier fishing does not require a license, it is especially attractive to low-income anglers. For example, Quimby et al. (2020) reported that in a study of pier fishing in generally wealthy Santa Barbara, California, 88% reported annual household income below the state median and 73% were non-white. Further, the study of Los Angeles pier fishing by Stevenson et al. (2012) found that the majority identified as persons of color, fished *only* from piers, and spoke English as a second language. Likewise, many anglers who continue to fish the Berkeley shoreline are lower- to middle-income (Antinori et al., 2025). This same study also projects an increase in angling visits should the Berkeley pier reopen to even just a length of 2000' *without the ferry*, of 70%, 88% and 114% for low, middle, and high income anglers, respectively.

The environmental economics literature is replete with studies that estimate the value of angling trips for recreational fishing. For example, Pendleton (2011) estimated a value of $10 to $100/day (p. 156), and from $34-$536/ trip with charter boat fishing being towards the high end (Pendleton and Rooke, 2006). California is second only to Florida in percentage of population that participates in marine recreation (Pendleton and Rooke, 2006). A recent study based on shoreline fishing at Berkeley puts the value at $78 per trip, considering that the average shoreline fisher travels 24 miles one way from their home to the Berkeley waterfront solely to fish. In springtime, sportfishing boats and private boats go out into the Bay inside the Golden Gate bridge to fish for halibut. According to a Barrientos et al. (2017) report on recreational benefits for the California halibut recreational fishery, based on party/charter/private/rental fishing, Berkeley is the highest valued port in northern California and most frequent port of embarkation for halibut fishing for all of California.

Sources of Berkeley-specific fish reports and species caught off the pier near the shoreline, along the existing (previously opened) pier, and from sportfishing boats leaving out of the Berkeley marina include:

1. BerkeleyMarina_baitntackle: Instagram posts on regular basis from the marina's bait shop show catches from nearby Berkeley waterfront locations
2. California Dawn sportfishing Facebook page: https://www.facebook.com/californiadawnsportfishing/
3. Golden Eye 2000 sportfishing Facebook page: https://www.facebook.com/goldeneye2000sportfishing/

Although the WETA and WSP plans mention adding much-valued fishing amenities like fish-cleaning stations and seats to the proposed pier extension, they include elements with potential to reduce fishing as a recreational and subsistence activity. Yet, **the project makes practically no reference to nor includes data on fishing as a potentially displaced activity with social equity consequences.**

EIR scoping input for angling impact:

- *Incorporate existing reports and studies on shoreline and pier fishing relevant to the Berkeley waterfront area to value changes in visitation rates for fishing and compare baseline condition of 2000' pier without ferry and the dual use ~1000' pier with ferry and design-specific 400' breakwater.*
- *The 400' breakwater in the ferry plan is designed to service the ferry in sheet-pile cement design, which inhibits fish migration and spawning. The design encourages siltation and therefore requires additional dredging over time. The*

EIR should assess specifically the impact of the breakwater design and maintenance on fishing catch rates over the lifetime of the project.

- *Examine potential safety risk and deterrent on fishing demand of crowding on a dual-use pier for the first 500' of pier accommodating ferry passengers and recreational/subsistence fishers.*
- *Examine the impact of parking fees and access barriers in the WSP and ferry plan.*
- *Verify consistency of plan with BCDC policies on social equity with regard to fishing activity.*
- *Compare the baseline (at least) 2000' pier which accesses deep water historically prized by fishers visiting the Berkeley pier to the ~500' recreational pier extension to the proposed ferry pier and breakwater.*
- *Assess impacts on recreational/subsistence fishing of dredging along the pier and ferry route throughout project lifetime.*
- *Assess noise and traffic from ferry operations that would reduce catch rates and therefore the expected value of an angling trip to Berkeley.*
- *Expand analysis of the above to cover all seasons, not just a single point in time, to capture fishing effort which follows migration patterns of targeted fish species.*
- *Expand analysis to include a cumulative impact on above for the built-out ferry system beyond the proposed project outline.*

4. Fish habitat

While the comments in this section overlap with the section above, we attempt to isolate and expand on impacts the biological resources themselves. The bay waters around the pier prior to 2015 are known as spawning grounds for some fish species.
Fish populations are also migratory and seasonal, and interact with other parts of the bay ecosystem. A number of plan elements could negatively affect fish habitat in the area:

- Dredging to accommodate a large vessel alongside the pier close to shore (within 500') plus initial construction and ongoing maintenance could interfere with all fish populations.
- An estimated 16 morning and 12 afternoon weekday crossings between Berkeley and San Francisco alone, plus 14 crossings on weekends and additional crossings for the Berkeley-Larkspur route, would create additional turbulence and noise, interfering with fish populations as well as angling (COB 2021 Feasibility Study).
- The original WETA plan called for a diesel ferry, while electric ferries were mentioned later in the process. Uncertainty remains whether an electric ferry

would accommodate the natural conditions of the Berkeley pier, which experiences high winds and waves during much of the year.

EIR scoping input: *EIR should assess impacts on all fish and marine species that are part of the ecosystem in the path of the proposed WETA ferry with respect to:*

- *New and long-term maintenance dredging*
- *Siltation from a sheet pile breakwater that interferes with halibut and other fish spawning grounds and habitat*
- *Turbidity/turbulence and noise from the San Francisco, Larkspur and other routes in the plan*
- *Ship strikes*
- *Light pollution*
- *Diesel versus electric vessels*

5. Dredging for WETA ferry project is new dredging

The area proposed for the ferry route includes a federal navigation channel under the Army Corps of Engineers. However, the channel is not dredged by the Corps, as it is not considered a critical navigational location. Nor has it been dredged in possibly 50 years or more. **The area proposed for the ferry dock has not been dredged recently and should be considered new dredging.**

The Berkeley Marina was partially dredged under a recent project permitted by the Corps. The intended area is shown in the figure below. But it does not include the channel proposed by the ferry route. Moreover, the area covered in the diagram was not fully dredged.

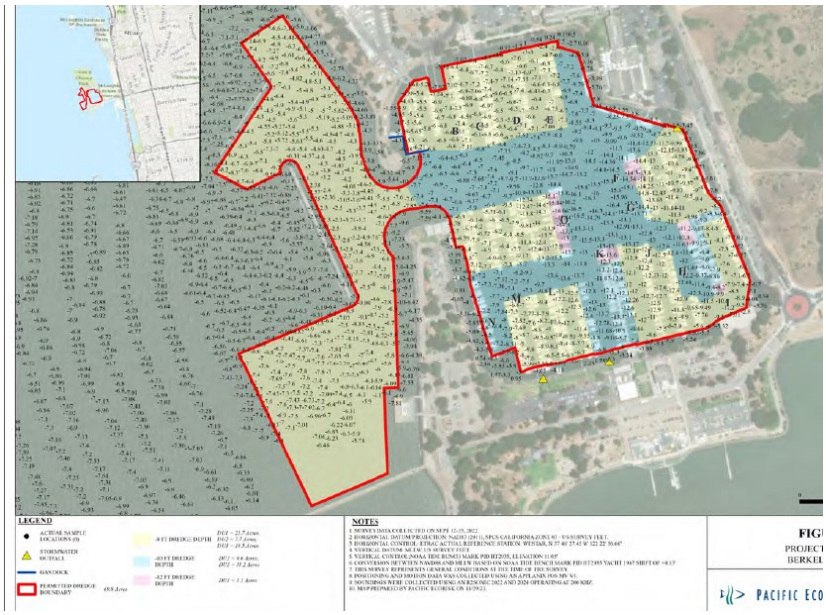


Figure 2: Dredging area map for Berkeley Marina project

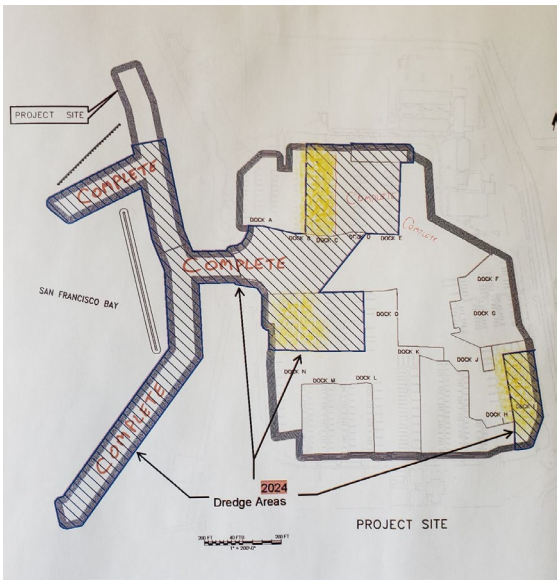


Figure 3: Areas actually dredged (Berkeley harbormaster office)

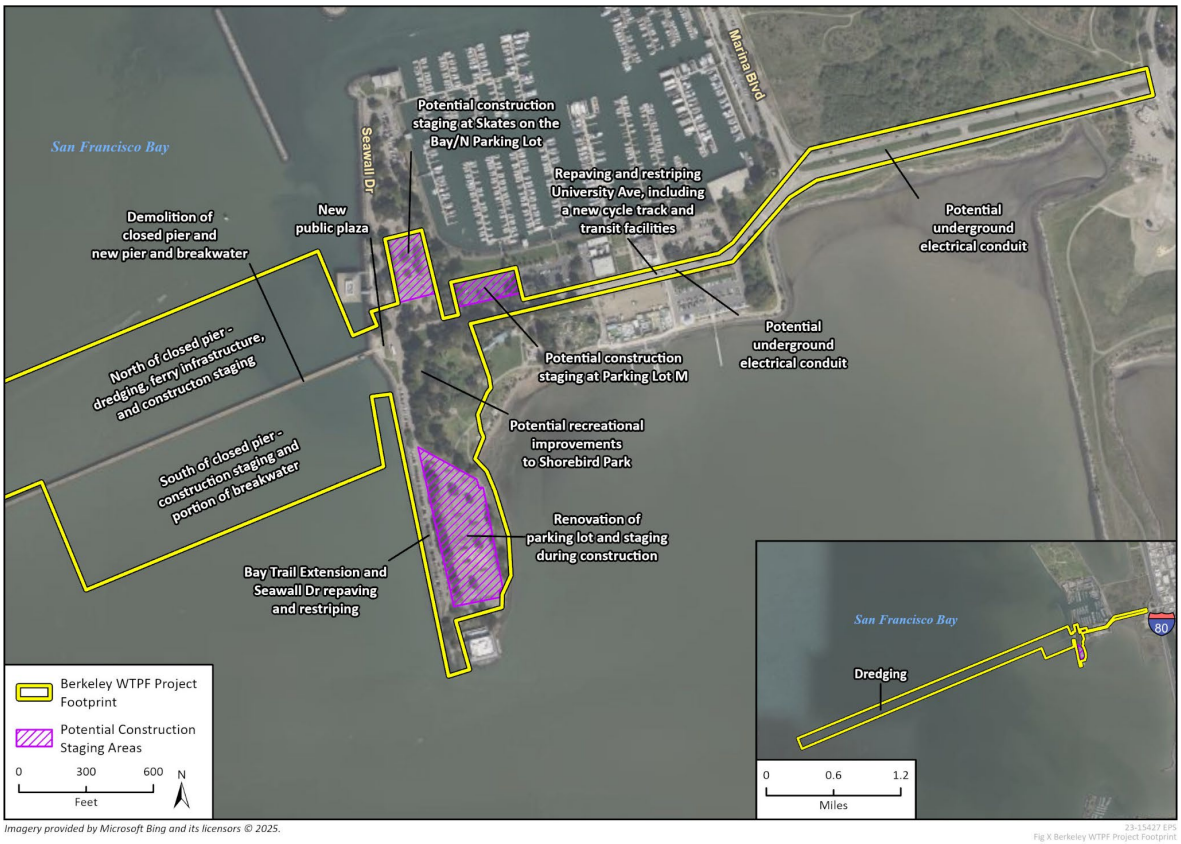


Figure 4: Areas required to be dredged and staged under the WETA ferry project (NOP of EIR, COB).

The area proposed for the ferry terminal and for the ferry service routes were not dredged. The Army Corp of Engineers website at https://www.spn.usace.army.mil/Missions/Regulatory/Public-Notices/Article/3655212/spn-2005-299690-berkeley-Marina-dredging/ shows a Marina dredging project in 2024. Dredging was focused inside the Marina and the Marina entrances.

EIR scoping input: *This is not Corps maintenance dredging nor is it COB maintenance dredging. Any dredging for the ferry project should be considered new dredging and treated as such under the rules and regulations of BCDC, CEQA, the Army Corps of Engineers and any other agency overseeing dredging in the Bay.*

6. Characterization of alternatives

a. Location alternatives must be adequately assessed

The only alternative examined by the WETA ferry plan is a site innermost in the Berkeley Marina near an old slab of concrete that once served as a ferry dock (aka the Old Ferry Pier). The last time this was used for a ferry was in 1989 by the Red and White Fleet for about six months after the earthquake, after which it suspended service **due to lack of ridership**. This location is not viable as an alternative, and acts a **"straw man"** in the analysis as currently structured. During public meetings, the city only offered as alternatives differences in breakwater design of the project.

Several feasible alternatives exist which have not been analyzed. One is the previous D&E dock location near the Hornblowers docks and the Doubletree Hotel. Another is the Hornblower docks themselves, in underused space. Third are docks currently used by the Genentech and previously the Tidelines ferries, which closed during the pandemic. The latter is a central location in the Marina and adds only two minutes' travel time to San Francisco, based on the Genentech ferry departures/arrivals, excluding docking maneuver time.

In addition, an in-harbor dock reduces need for new dredging, and thus marginal environmental impact, as the Marina undergoes maintenance dredging regardless. As such it possibly reduces Berkeley's cost of Marina maintenance because the needed dredging costs could be shared over the years with WETA, and thus provide a more viable economic pathway for ferry service.

EIR scoping input:

- *EIR scoping should integrate the ferry project with the WSP and include examination of options to access a central in-Marina facility.*
- *Specifically, the EIR must assess, as a docking location alternative, a central location within the Marina, such as the previous D&E docks, Hornblower docks or the K docks.*



Figure 5: Concrete slab inside Marina just above red traffic dot serviced old ferry, and is innermost location. D&E dock location is much closer to entrance, out of sight in image but on far right about halfway up. K dock extends from the harbormater's office in center of marina. The Hornblowers dock by the hotel on far right (not shown) in the marina. Source:https://berkeleyca.gov/your-government/our-work/capital-projects/waterfront-specific-plan

b. Alternative scale of ferry should be included

Current ridership demand estimates for the WETA Berkeley-SF are 4000, using a 400-passenger ferry, according to WETA business plan documents. Several indicators suggest the WETA ferry may not reach this level of usage. Public transit demand is down across the Bay Area systems including BART. About 60% of respondents in a COB questionnaire said they would never use the ferry to commute. For leisure, 56% said they'd never use it or use it less than 10 trips annually. **There is a real danger that the envisioned large-scale ferry with about 28 crossings per day would be mainly empty.** Stranded assets would pose a considerable cost to WETA and Berkeley, as well as having serious environmental impacts.

A reasonable alternative of a smaller scale ferry service must be included in the EIR. A smaller ferry would result in less cost, should demand predictions collapse. Smaller scale service (and e.g. docking within the Marina) could reduce the financial burden on Berkeley and at the same time fit demand patterns more accurately. However, smaller scale ferries have not been considered in planning as alternatives.

EIR scoping input:

- *Examine costs and environmental impacts of an alternative smaller-scale electric ferry, say, for example, a 150-passenger ferry, as a feasible alternative to the current plan and assess the difference in environmental impact.*
- *Data on current usage by Genentech ferry and previous usage of Tidelines ferry ridership must be made available publicly for the report for a feasibility comparison of a small commuter ferry service operating in Berkeley.*
- *Data on the COB questionnaire must be included in the EIR and reconciled with WETA's expansive ridership projections.*

7. Impact of tree removals

The Marina area faces the mouth of the Golden Gate, referred to as "The Slot" (see graphic below). Existing large trees provide valuable wind relief to recreational visitors in the park for land-based activities like picnics and park events. They also shelter half of the South Sailing Basin, which supports children's water sports training. Therefore, removing large trees should be evaluated in terms of potentially decreasing the value of the park for recreational visitors, as well as air quality and wildlife habitat. For example, close to the pier, large trees are the roosting location for the resident wild turkeys. Hummingbirds nest in trees in Shorebird park. The white-tailed kite and osprey hunt in Shorebird Park and south cove waters.

EIR scope input: *Include analysis of tree removal impact on aesthetics, useability, wind protection and bird and animal habitat in the area.*

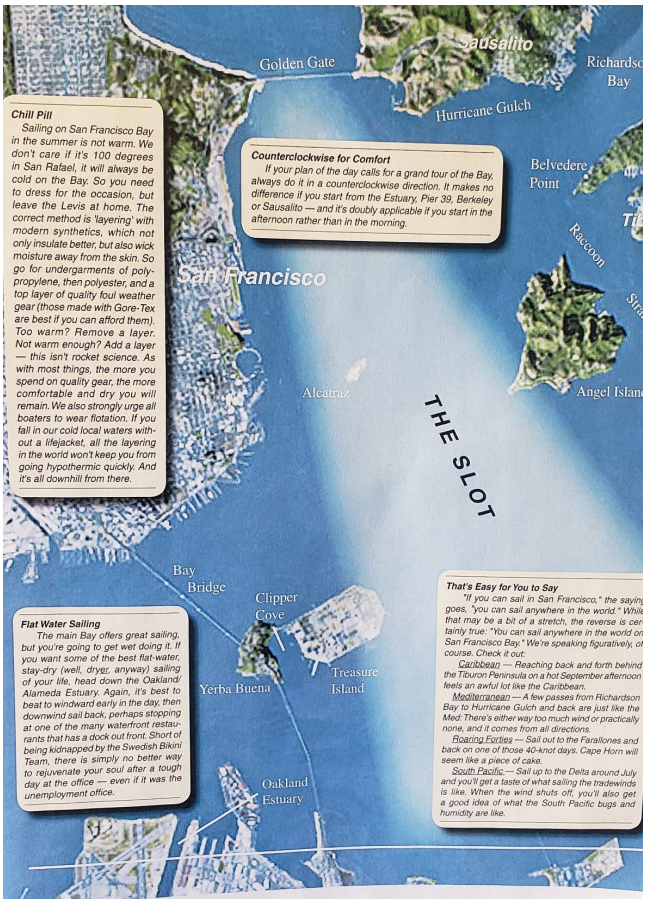


Figure 6: Graphic of "The Slot" wind pattern engulfing Berkeley waterfront and pier (bottom).

8. Ferry parking management

While this section overlaps with our first section on the waterfront as affordable public access and cultural resource, here we emphasize the particular impact of ferry patron *parking* on the Berkeley Marina as a major concern for equity, recreational, and land use. The parking study introduces paid parking (currently free) to recreational users. It forces them to park farther from Marina parks and shorelines. For many, visits to the project area and waterfront are intimately tied to access via private vehicle as well as public transportation. **Sailors, windsurfers, wingers, kayakers, fishers, families, guardians with children at the playgrounds, dog walkers, picnickers and others, crucially, cannot pile considerable amounts of gear, children, or animals aboard the 51 bus. Thus, public parking remains critical to many who visit. A total of 16% in the Kittleson intercept survey said they cancelled trips to the Marina because they could not find parking.**

Bus service to support ferry ridership is mentioned in the ferry parking study. However, consultants noted the limited utility of buses for ferry patrons. The Kittleson study notes in its case studies that AC Transit discontinued shuttle service to the Seaplane Lagoon WETA terminal due to low ridership, and that AC transit service to the Harbor Bay ferry terminal currently has few users.

It is unclear if and how Berkeley officials will fulfill their statutory obligation to keep ferry riders from usurping recreational users' parking. Past experience with Tidelines and Genentech ferries shows **that the city did not succeed in getting ferry patrons to park outside of the South Cove recreational parking lots, raising doubt as to the city's motivation and/or ability to meet its BCDC obligations to preserve recreational parking and access.**

The recent parking study addendum also calls for expanding ferry patron parking to Marina Boulevard and the Skates parking lot. This balloons the scope of the project location as noted in the NOP. This proposal overlaps with the COB Waterfront Specific Plan, which has not been completed, and is compiled independently from the pier/ferry project even though the pier has historically been the central feature of the Berkeley waterfront.

The 315-space Seawall Drive lot was closed in 2018 to deal with a homeless RV encampment, and has been mostly closed ever since. **This was a major lapse in the city's responsibility to maintain public access.** Now the Berkeley Water Transportation Pier Ferry Project intends to devote the entire Seawall Drive lot to ferry parking. This will usurp Seawall Drive parking for people who fish or walk on the pier, which is more than ironic, given that this expensive project was presented as a way to reestablish the pier. Also usurped will be parking for new facilities at Hs Lordships restaurant site, parking to serve the southern Shorebird Cove picnic sites, and the boardsailing and swimming launch at Hs Lordships Cove, to say nothing of overflow parking for the heavily impacted South Cove parking lots.

EIR scoping questions:

- *Include analysis of what the city has done in the past when recreational parking was displaced by the Genentech and Tidelines ferry and plans for future, more effective enforcement capacity if large-scale ferry service is implemented.*
- *Expand project location to include all locations noted in the addendum to the parking study.*

- *Examine cumulative and distributional impacts of parking from the WSP and the pier/ferry project on the public's recreational use, affordable access, and the extant legal land use designations.*



Figure 7: South Cove west parking lot on Saturday, May 10, 2025 at 1pm, with east lot in background. Both are almost entirely used by recreational visitors. Paving the lot as planned will significantly reduce the number of parking spaces. The Kittleson ferry parking study attempts to plan for ferry parking in conjunction with the WSP. *(Photo: C. Antinori)*

9. Bird nesting and feeding grounds

The waterfront area is home to many birds in Cesar Chavez Park (https://ebird.org/hotspot/L285281/bird-list) and the Sylvia McLaughlin State Park, part of the Eastshore State Park system. Resident bird populations include ospreys who feed in nearby waters.

EIR scoping input: *The* ***cumulative*** *impacts of the WSP and the ferry project need to take into account increased noise, increased traffic, tree removal, new and maintenance dredging, ferry operations, and reconfiguration of parking patterns on bird habitat, over the course of migratory and seasonal cycles rather than at one point in time. In doing so, it should:*

- *Document all bird species in area, migratory and resident*

- *Use eBird "hotspots" and other sources to name the birds documented in the area, potentially up to to 200 species. (https://ebird.org/hotspots)*
- *Consider the loss of trees at Shorebird Park that support hummingbirds (see section 7)*
- *Incorporate information that the burrowing owl is currently under consideration to be added to the Endangered Species list of the State of California (https://wildlife.ca.gov/News/Archive/cdfw-seeks-public-comment-related-to-western-burrowing-owl)*
- *Include bird species identified at the project location that are among the CA Species of Special Concern and Fully Protected Species. This includes the White-Tailed Kite and osprey (https://wildlife.ca.gov/Conservation/SSC/Birds)*

10. Clarify economic factors to contextualize project feasibility

As BCDC considers environmental impacts overall and weighs any opportunity cost for *not* building the large-scale WETA ferry, realistic information should be provided about those opportunity costs. WETA documents offer no predictions, nor conjectures, of secondary economic benefits for Berkeley. Consultant reports suggest minimal economic benefits. The Keyser Marston report suggests very modest contributions to the Marina Fund which may generate only up to 10% more of any revenues the city receives from food and beverage consumer spending (Keyser Marston, 2021, pp. 8-9). The report **extends only aspirational comments, e.g. "It is hoped that a large-scale ferry with weekend service will attract an additional hotel" (Keyser Marston, p. 9). The WETA ferry terminal at Jack London Square, Oakland, has failed to prevent a large vacancy rate in commercial rental space.** Oakland's Waterfront Hotel which closed in January 2025 had 145 rooms, just steps away from this terminal.

EIR scoping should include: *Currently available estimates of the secondary economic benefits so that reviewers may weigh the proposed project against its environmental and human costs. The scoping should compare this against the baseline of 2000' pier without ferry.*

11. Compatibility of electrification and emergency service

The waterfront area is land filled for recreational purposes. As fill, the waterfront area servicing the dock may not be stable in an earthquake. The ferry dock is described as serving an electric ferry *if feasible*. In such a case, an electrification facility to serve electric zero-emission ferry vessels may not withstand natural disasters such as earthquakes, tsunamis or violent storms.

Storms also come from north and south throughout the year, making navigation in “The Slot” through the Golden Gate (see above) more challenging. Any final recharging station and breakwater design compatible with supporting electric ferry service year-round and in emergencies should be confirmed within the EIR. With this information, environmental impacts noted above (e.g. dredging, aesthetics, recreation, habitat) can be more clearly assessed.

EIR scoping input:

- *To properly understand the environmental impact of the above, the EIR must provide specifications on infrastructure to serve an electric ferry vessel in an emergency. If it cannot, then it must delete references to emergency response in the scope of the project.*
- *If it specifies electrification infrastructure to withstand natural disasters, then it should specify whether the ferry service will be able to handle emergency vehicles or just personnel. Include technical specifications of breakwater design to support operations year-round and in emergencies.*

Thank you so much for this opportunity to respond. Please let us know if we can answer any questions about these comments.

Berkeley Waterfront Community Coalition

Members include:

Camille Antinori
David Fraser
Ben Lee
Nick Goyenetche
Cyril Dram
Gordon Stout
Carla Woodworth
Jim McGrath
Andrew Sullivan
Doug Yamamoto
Gary Casterline
Paul Kamen

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From: Anne Bernstein
To: Tomerlin, Ashley@BCDC
Subject: Keep waterfront parking free
Date: Monday, October 27, 2025 9:03:45 PM

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To the Bay Conservation and Development Commission:

I was one of the more than 500 letter writers opposing charging for parking at the south lot in the Berkeley marina and I want to register my continued opposition.
It is vital not to make ability to pay foreclose access to the waterfront for Berkeley residents at all socioeconomic levels. Parking fees will make coastal access a privilege of the privileged.
When enforcement expenses are added in, the resulting revenue will in no way be worth the social cost,

Please do not enact this discriminatory measure.

Thank you,

Anne Bernstein
Long time Berkeley resident
Member of Bay Area Sea Kayaking Club

From:	Keith Chong
To:	aishii@berkeleyca.gov; mayor@berkeleyca.gov; rkesarwani@berkeleyca.gov; bblackaby@berkeleyca.gov; itregub@berkeleyca.gov; ttaplin@berkeleyca.gov; SFerris@cityofberkeley.info; BMASP@cityofberkeley.info; rmiller@berkeleyca.gov; Tomerlin, Ashley@BCDC
Subject:	Please keep berkeley waterfront access free
Date:	Monday, October 27, 2025 2:37:08 PM

You don't often get email from lucimous@yahoo.com. Learn why this is important

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Hello,

Over 550 letters were sent to council opposing the marina parking fees in the south lots. People of all socioeconomic levels use the space for coastal access and recreation.

Please rethink the wasteful idea to charge for parking, especially when it will not affect the bottom line once enforcement is figured in. Don’t do it. It only reduces everyone’s access to “bluespace” recreation.

Keith Chong
Berkeley Resident
Frequent waterfront visitor and Cal Sailing Club Member

From: Sebastian Diaz
Subject: Keep Berkeley Waterfront Free & Accessible
Date: Monday, October 27, 2025 2:54:19 PM

You don't often get email from sebastiandiaz.film@gmail.com. Learn why this is important

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Dear Berkeley City representatives,

I write to express my opposition to charging residents and visitors to go to the Berkeley waterfront Marina and Cesar Chavez Park.

I support access to Berkeley parks for everyone. Free access to natural spaces are crucial for our community's physical and mental health, and there should be no financial barrier for those who can't afford to pay parking fees, including students, low- income, and below-low-income families.

Part of the reason I live in the East Bay, and pay the high rent that goes to these parks in my taxes, is to enjoy access to these public spaces free of charge.

I am aware that over 550 letters were sent to council opposing the marina parking fees in the south lots. Furthermore, charging for parking will not affect the bottom line once enforcement is figured in, so it becomes a wasteful idea. I urge you to reject this proposal to charge a fee to visit our parks. It only reduces everyone's access to "bluespace" recreation.

Sincerely,
Sebastian Diaz
1188 Oxford St, CA 94707
--
+1 [917] 618.2637
sebastian-diaz.com
athousandpinesfilm.com

From:	Daniel C. Eckhard
To:	aishii@berkeleyca.gov; mayor@berkeleyca.gov
Cc:	Daniel C. Eckhard; rkesarwani@berkeleyca.gov; itregub@berkeleyca.gov; bblackaby@berkeleyca.gov; ttaplin@berkeleyca.gov; SFerris@cityofberkeley.info; BMASP@cityofberkeley.info; rmiller@berkeleyca.gov; Tomerlin, Ashley@BCDC
Subject:	Marina recreational parking fees
Date:	Sunday, October 26, 2025 11:10:37 PM

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Hello to all considering charging for parking in the marina lots,

I am writing you in opposition to charging for parking in the Berkeley marina lots.

I was a Berkeley resident for almost 30 years before moving to San Anselmo 2 years ago, but still visit the Berkeley marina and Point Isabel frequently during spring and summer, mostly for windsurfing or just relaxing along the waterfront. From the information I have, this change would not be a significant money maker for Berkeley, but would change the tone of the marina and make it less user friendly and obviously more costly for visitors. San Anselmo recently tried charging for parking in the downtown area, and there were so many complaints from both visitors and merchants that they reversed their decision and made parking free again. This is in a town where everyone could afford parking fees.

Please don’t make this bad choice and make life less enjoyable and less affordable for all who enjoy the Berkeley waterfront.

Thanks for your consideration,

Dan Eckhard

From: BCDC Public Comment
To: Tomerlin, Ashley@BCDC; Plese, Alyssa@BCDC
Subject: Fw: Bay Conservation and Development Commission (BCDC) Design Review Board meeting
Date: Thursday, October 30, 2025 2:37:42 PM

I think this is a public comment for the DRB meeting? Do these usually get posted on the website?

Kat

From: Steve Grue LEP <Stevepsy@comcast.net>
Sent: Wednesday, October 29, 2025 6:48 PM
To: BCDC Public Comment <publiccomment@bcdc.ca.gov>
Subject: Bay Conservation and Development Commission (BCDC) Design Review Board meeting

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WARNING: This message is from an external source. Verify the sender and exercise caution when clicking links or opening attachments.

Dear Berkeley City Council and Members of the Parks, Recreation & Waterfront Commission,
I am writing to express my strong opposition to the **ferry terminal component** of the Berkeley Pier and Ferry Access Project. While I fully support restoring safe public access to the historic pier and revitalizing our waterfront for recreation, the inclusion of a large-scale ferry terminal is incompatible with the character, environment, and needs of Berkeley's shoreline.
The Berkeley waterfront has always served as a **natural refuge and recreation area**, valued for its views, access to the bay and water sports (sailing, windsurfing, swimming, etc.) quiet atmosphere, bird habitat, and a range of family-friendly public spaces. Introducing daily ferry operations, parking expansion, and commuter traffic would fundamentally alter that environment. The noise, lighting, and pollution associated with ferry operations—even "zero-emission" vessels—will intrude upon the delicate ecology of the Bay and disrupt the peaceful experience that local residents and visitors cherish.
Moreover, the **transportation justification for the ferry** is weak. Berkeley is already well-served by BART, AC Transit, and bicycle infrastructure that provide direct, lower-emission access to San Francisco. Adding a ferry terminal here would duplicate existing transit routes at enormous public cost, while offering minimal travel-time benefit. Funds devoted to ferry infrastructure would be better spent improving existing transit connections and maintaining our parks and open spaces.
The proposed **landside impacts** are also concerning. Expanding parking and access roads near the Marina will bring additional traffic congestion to University Avenue, especially during commute hours and weekends when the waterfront is already congested. Ferry ridership projections appear speculative, yet the infrastructure would be permanent—leaving Berkeley to absorb the environmental and financial costs long after the initial grant money is spent.
Finally, this project conflicts with Berkeley's long-standing environmental goals. Rebuilding the pier as a community and recreation asset aligns with our city's sustainability vision; turning it into a regional ferry terminal does not. True climate action means **reducing total**

traffic and emissions, not merely shifting the mode of commuter travel at the expense of shoreline habitat and public serenity.

For these reasons, I urge the City to **decouple the ferry terminal from the pier restoration**, focus on restoring the structure for pedestrian, fishing, and recreation use, and preserve the Berkeley waterfront as a place of open access, wildlife protection, and quiet enjoyment for all.

Thank you for considering the perspective of residents who value the Bay for its beauty and calm—not as another transportation corridor.

Sincerely,

--
Steve Grue
Licensed Educational Psychologist
Pronouns he/him/his

1090 Mariposa Av.
Berkeley, CA 94707
510-260-7792

From: Pam Johnson
To: Tomerlin, Ashley@BCDC
Subject: Marina parking!
Date: Monday, October 27, 2025 8:34:43 AM

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I oppose the fees-for parking!
Ridiculous!
My only park and Rex walk area!
Stop!
Pjohnson
Lives at university and San Pablo
Sent from my iPhone

Jim McGrath
2301 Russell Street
Berkeley, CA 94705
October 30, 2025

Bay Conservation and Development Commission
375 Beale St
San Francisco, CA 94105
Subject: November 3, 2025, Design Review Board meeting

Dear DRB Members:

In January of 1967, BCDC authorized a permit to allow the City of Berkeley to fill the area that is the subject of your November meeting to "permanently establish public access and recreational use..." The city obtained more than $20 million in loans and grants to improve that access but has not provided the resources to maintain those facilities. Now the City is seeking to establish a commuter terminal in that area, with an access proposal that would dramatically decrease public access and recreation. I ask that you send them back to the drawing board and direct them to engage with the existing users to craft a plan that improves access and reflects the unique value of this shoreline park.

THE PROPOSED PLAN CONFLICTS WITH BERKELEY'S ADOPTED PLAN, WHICH PROVIDES FOR INCREASED PUBLIC ACCESS AND DOES NOT ALLOW FOR A FERRY TERMINAL AT THE PIER

The City of Berkeley adopted their existing plan for the area, the Waterfront Specific Plan, in June of 2003. While the city has initiated an effort to update that plan, they have not completed that effort. The city's proposal before you conflicts with that plan. The 2003 Waterfront Specific Plan does not include a designation for a ferry terminal or for commuter parking. Instead, it includes provisions for improving access to the Bay adjacent to the H's Lordships Restaurant. The plan provides:

- "The plan identifies permitted land/water uses …" Page 1. No ferry terminal seaward of Seawall Drive is included.
- "Enhance windsurfing activities at the point immediately west of H's Lordships Restaurant." Page 37. Also shown on the adopted Marina Master Plan, Page 42 and Figures 9.0-12.0 (see attached scans of plan pages)

The heavily used access point adjacent to H's Lordships has become more important since 2003. In addition to windsurfers, whose access is specifically protected; it is now used by swimmers, wingers, kayakers, paddleboarders crossing the bay, and anglers. It is the.only location for access to the Bay for those users at low tides. This link provides the bathymetric map that shows that point: https://berkeleyca.gov/your-government/our-work/capital-projects/south-cove-sailing-basin-dredging-study . Policy support for

recreation at this site has increased even more since 2003 with the passage of the Water Trail Act. That act, which has led to grants for the City of Berkeley, held that "water-oriented uses of the San Francisco Bay are of great benefit to the public welfare …and add to the quality of life." I agree.

The City of Berkeley presentation posted with the agenda ignores this access point, and the adopted plan. Documents we have received through a Public Records Act request and a recent memorandum to the City Council indicate that the city is contemplating a lease that would require additional CEQA compliance and might involve exclusive use of some of the parking. Some wingers using this site have been told that the access point will be closed once the restaurant is leased. The city has also approved a project to charge for parking in this area, which may involve installation of parking infrastructure within BCDC jurisdiction. It seems that there are multiple different proposals for the area filled under BCDC's 1967 permit, and that they all would affect your ability to find that the city is including "maximum feasible access." These projects need to be evaluated concurrently rather than pursued separately.

THERE IS A PARKING PROBLEM

The City of Berkeley continues to misrepresent the limited parking data that they have collected and continues to ignore information that has been provided to them. I incorporate by reference here my letter to the city dated March 18, 2025, which was previously provided to BCDC staff. That letter pointed out data not used by the City which showed the parking lots in the South Basin at 96% full on summer weekdays. It also makes the point that the vast majority of the 583 daily counts that the city claims were taken during non-recreational periods. Having examined the raw data that the city used, the only thing it tells anyone about recreational use is that there are swims on Sunday morning that bring cars to the South Basin at 10:00 am, and that dog walkers go to Cesar Chavez in the morning.

The city now states that there are 60 days of data taken at 2:00 and 4:00 pm—but that data is not provided. It is not clear that those counts were taken during the summer recreational programs when those lots are full.

Of greater importance is the city's non-response to the information provided by Placer AI cell phone data. That data showed that 1.8 million people visited the Berkeley Waterfront during the year that ended this July. That is comparable to the 4 million visitors to Yosemite Park, which is over 1100 square miles in area! That is an average of over 4900 visitors a day coming to the waterfront, and nearly four times the number of visitors to the North Basin Strip in the Sylvia McLaughlin State Park, which is the second most popular East Bay Regional Park. We obtained this information from Placer AI in response to discussion at the first DRB meeting that the city needed to do more to understand their users.

The city also seems to have averaged the parking data in some manner that was not explained. Of course, people visit during peak recreational periods, when the wind is blowing, the weather is hot, there is a clinic on kayak skills, and so forth. Such averaging is not an appropriate use of data when the objective is to understand the patterns of use and prevent usurpation of recreational parking spaces. The city also throws parking lots on the other side of University Avenue into the mix. That ignores the permit history of this fill, which was intended to provide for permanent recreational access. Some of those lots are closed, require a permit to park, or are otherwise unavailable. The city continues to manipulate what little parking information they have—they spent only $22,000 on incomplete parking data collection for the most challenging issue the ferry proposal raises.

In my letter of March 18, 2025, I pointed out that the Kittelson Addendum, which the city asserted showed ample parking during weekdays, did not collect parking information during peak weekday periods. Nor did the Kittelson Addendum include the 11 days of data collected between July 23, 2024, and August 23, 2024. While only collected at 4:00 pm, that data showed lots very full on weekdays—something we have also documented in multiple photographs and letters. Now the city claims that they have some more data, collected at 2:00 pm and 4:00 pm—but only the conclusions are presented. I'm certainly willing to consider any data the city might have—if it is actually presented—but I would remind the DRB that previous data collection by the city stopped before summer vacation for school kids that fill the marina during the summer.

The city is now planning to begin charging for parking, but only on the lots that provide recreational parking; lots that were improved with grant funds. The city has made no effort to evaluate the Placer AI data that we have provided and does not intend to monitor the impacts of such parking fees on recreational use or equity. The Placer AI data confirms what we have argued before this Board—the grant-funded improvements to the South Basin and the Bay Trail have increased recreational use of all kinds and have increased the income and equity diversity of those users. How many of those new users will disappear if this Board finds the city's proposal to be "maximum feasible public access?"

While not perfect, the type of cellphone based data provided by Placer AI offers the most comprehensive and granular understanding of the behavioral patterns and cost roughly the same amount the city has spent on misleading and incomplete parking studies. It also addresses directly the recommendation of Chair McCann about the need to identify and map user groups and tie them back to the required—and protected—parking. The city is not only aware of this data, but they have access to it through organizations funded by the city that have a current license. This technology not only allows the city to understand use patterns by location, hour, day, week, month and year, but allows analysis to occur on a parking lot by parking lot basis. It would allow interested parties to discern the impact of introducing parking fees on use. We ask why the city is not taking advantage of this data when it has access to the data, when it can answer the question of both the public and members of the DRB about current use patterns, and where analysis by third parties show it is over 93% accurate.

The city, in Exhibit 5, claims that the weekday demand for ferry parking would only be for 318 to 351 spaces. Yet data from the 2025 Onboard Ferry Survey show an overall system average of 64% of riders arriving by car. This average is brought down by the low car use for access in San Francisco. If there are 900 departing passengers, that would be 576 arrivals by car, not 318 or 351. With 250 parking spaces proposed. Some commuter terminals have more than 80% of their passengers arriving by car. The city has developed this claim by assumption, not by substantial evidence such as analyzing the existing and recent small ferry operations, which operated at about 60-70% car arrivals.

FEASIBILITY

BCDC is responsible for providing a critical review of developer proposals on the shoreline, and in this case, on bay fill intended for recreation. As I have stated, the city proposes to diminish public access. No improvements to the existing launch are proposed, parking fees will reduce use, and the proposal includes only 550 feet of recreational pier suitable for fishing, to replace the 3,000-foot-long fishing pier. Neither the City nor WETA have funds to build a Berkeley terminal, or for operation of a terminal if built. The city has not updated the cost estimates for many years, and the original cost estimated that Berkeley would pay for all the recreational facilities at a cost then estimated to be $29 million. WETA has acknowledged in their regular meeting packets that they don't have enough money to build a new capital facility estimated to cost over $120 million or continue to cover the operational subsidies required to run the existing system after 2030. WETA adopted a budget for $81 million in operational costs and expects to carry 3,032,823 passengers. That works out to be a cost per passenger—each direction—of $26.70, and a subsidy of $22 per passenger in each direction. A roundtrip on the existing system thus requires a $44 subsidy. Such an approach does not remotely achieve the established goal of collecting 40% of operational costs from the farebox, and is not sustainable for the existing system, much less an expanded system. It is premature to evaluate whether the access measures proposed by Berkeley are the maximum feasible consistent with the project.

ZERO EMISSIONS?

WETA has begun to acquire electric ferries; two 400 passenger ferries for the Oakland/Alameda to San Francisco operation are on order as part of WETA's Rapid Electric Emission-Free (REEF) Program. It is not clear that funds will be available to continue that effort. The WETA Board meeting of October 9, 2025, included a Memorandum on the Long-Term RM3 Capital funding Outlook. On page 3, under Scenario A, "Focus on REEF" it stated that if there was full implementation of the REEF program, "Project capital budgets for the Berkeley and Redwood City expansion projects would not be fully funded."

Ferry transport, even with electric ferries, is not a zero-emission program. Charging electric batteries involves some level of carbon-based energy generation. Most passengers arrive by car. According to the 2025 Onboard Ferry Survey, which asked how riders got to

the terminal, 64% got there by car for the whole system. Some terminals have even higher percentages of passengers arriving by car, Vallejo at 89%, Alameda Main Street at 74%, Richmond at 86%, and Alameda Seaplane Lagoon at 82% access by car. I have commented in the scoping sessions for the preparation of an EIR for the ferry proposal that the EIR must reveal the true energy footprint of a new terminal. That EIR has not yet been issued in draft.

RECREATIONAL PIER

The exhibits for this DRB meeting include beautiful renderings of a new segment of recreational pier, a plaza at the end of University Avenue that is derivative of the San Francisco Ferry Plaza, and a new cycle track that parallels the Bay Trail. These facilities, and the parking management proposal that the city presented to the DRB earlier, seem to be much more expensive than prior design ideas—but no revised cost estimates are provided.

It seems inconsistent with the permit history of this site and the adopted plan to devote substantial resources to a new separated bicycle path less than 400 feet from the existing, separated Bay Trail and yet not carry out access improvements included in the existing specific plan. While the design for the new recreational portion of the pier is attractive, there is nothing that we have seen that compares its utility to that of the existing 3,000-foot pier for fishing and for strolling out onto the Bay. As pointed out earlier, WETA does not appear to be willing to fund any of the recreational elements of their proposed commuter terminal, and the City of Berkeley has no funds either.

LATENT DEMAND

We have repeatedly raised the concern that the city is dramatically underestimating the latent demand for access to the shoreline. The closure of the pier and the lack of general maintenance of the Marina has clearly resulted in dramatically lower visitation to the Waterfront Park. If these facilities had been maintained, we would see an even greater demand for parking and access to our shoreline. We have a clear case study of latent local demand for shoreline access in the Albany Beach Bay Trail project, where improvements to shoreline access drew new users. The city, however, has ignored this case study and its implications for Berkeley.

CONCLUSION

At the last meeting with the DRB, the Board members specifically asked the city to engage existing users—who provide about 2/3 of the revenue for the Marina Fund to understand use patterns and incorporate those findings into its plans. We are disappointed that the city has not followed this direction. The city essentially presents the DRB with the same narrative, ignoring the information about visitors that we have provided to BCDC staff. The city fails to recognize the value that the marina offers to its residents, and those of the

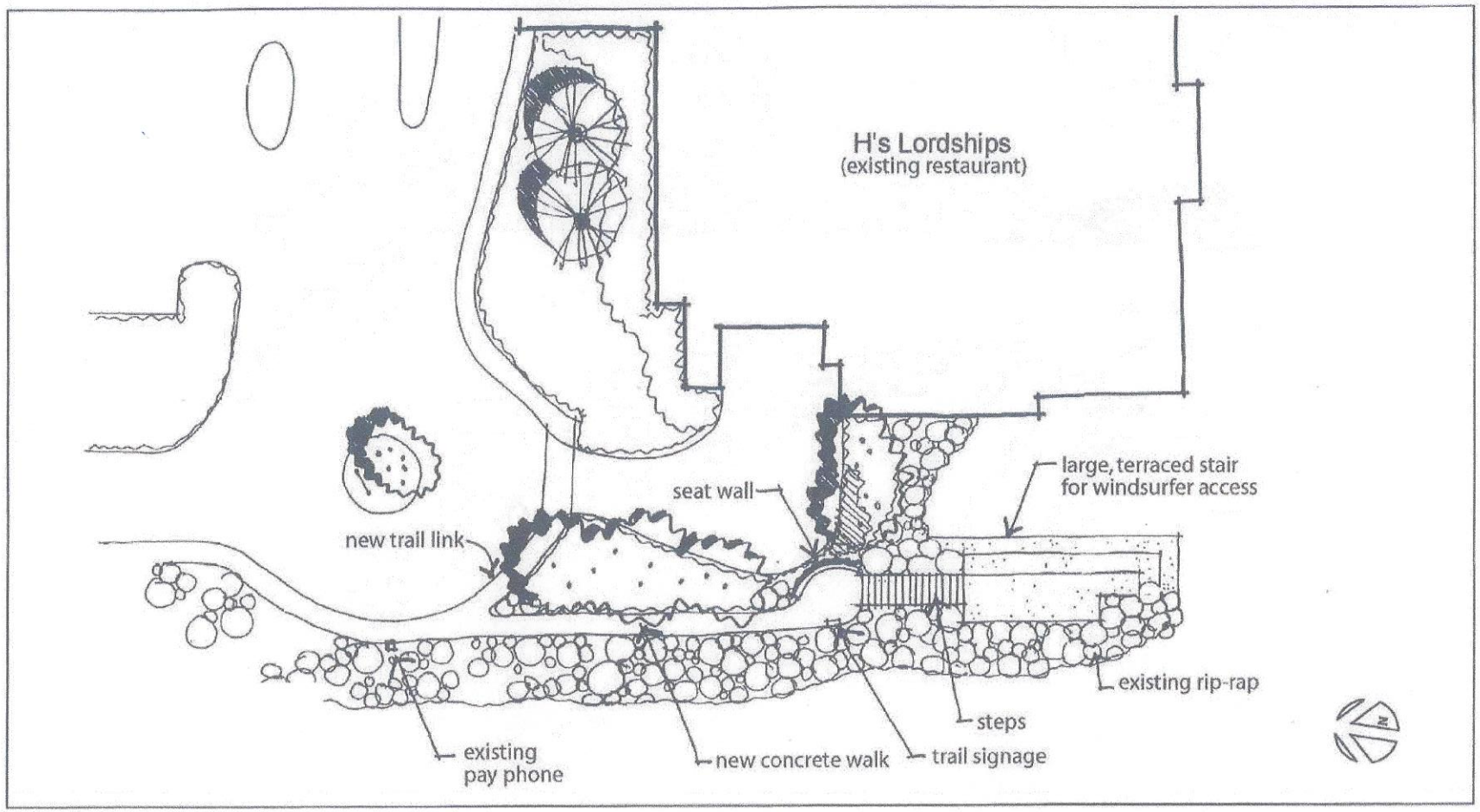
region—unique and easy access to our shoreline and Bay. A way to get close to the Bay, get out on the Bay on recreational equipment or a recreational pier, or simply enjoy the wildlife that can be found. It is important to note that recreational users are not opposed to either a ferry or more commercial development in the marina. We are, however, opposed to designs that profoundly compromise existing access, and economic assumptions that are largely untested and hidden. Again, we ask the city to engage in a constructive and open conversation with existing users to craft solutions that are sustainable and are consistent with the purposes for which BCDC allowed this part of the Bay to be filled.

Very truly yours,

Jim McGrath

Enclosures:

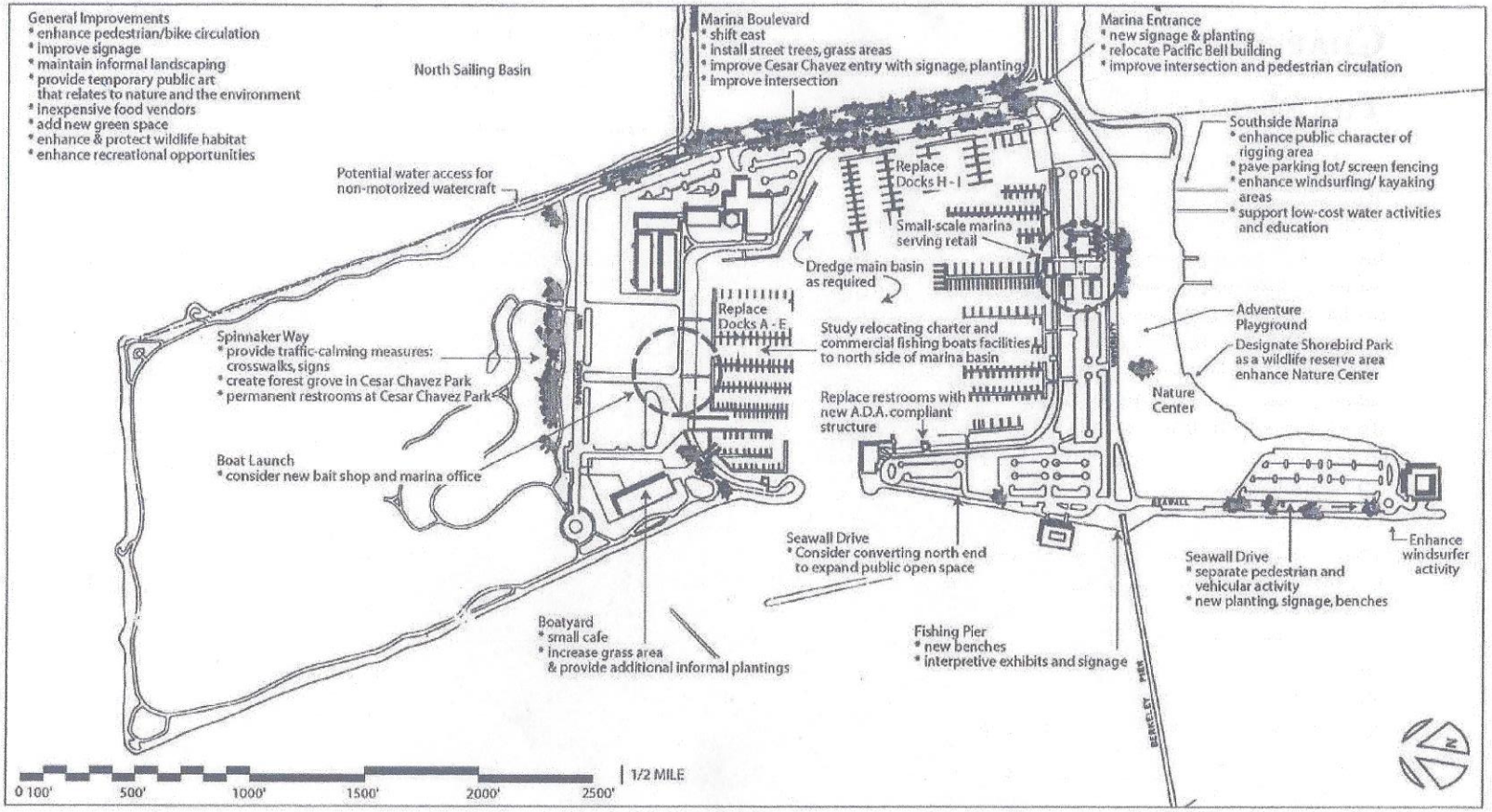
Plan maps, hydrographic survey page



BERKELEY MARINA PLAN
JUNE 2003

Wolfe Mason Associates, Inc.
Landscape Architects / Environmental Scientists

Figure 9.0
H's Lordships Improved Water Access Design Concept Plan



BERKELEY MARINA PLAN
JUNE 2003

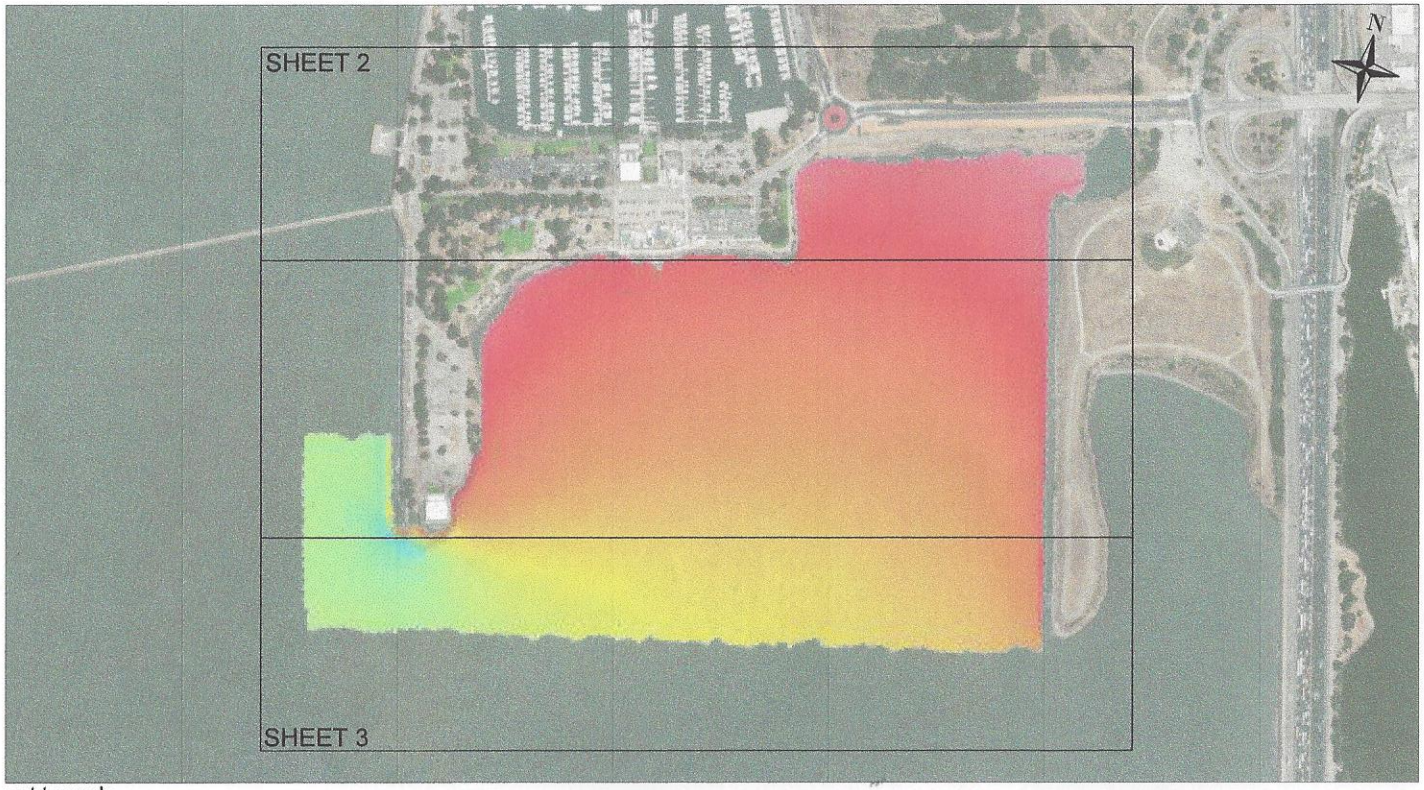
Wolfe Mason Associates, Inc.
Landscape Architects / Environmental Scientists

Figure 2.0
Marina Master Plan

BERKELEY SOUTH COVE SAILING BASIN

COWI

CONDITION HYDROGRAPHIC SURVEY



not to scale

SHEET INDEX:

SHEET 1 - PROJECT INFORMATION
SHEET 2 - INTERPOLATED SOUNDINGS BINNED AT 50 FT.
SHEET 3 - INTERPOLATED SOUNDINGS BINNED AT 50 FT.
SHEET 4 - CONTOURS & COLORED DEM

GENERAL NOTES:

1. SURVEY DATA COLLECTED ON MARCH 7 & 8, 2024
2. HORIZONTAL DATUM/PROJECTION: NAD83 (2011), SPCS CALIFORNIA ZONE 03 - U.S. SURVEY FEET
3. HORIZONTAL CONTROL: ETRAC REFERENCE STATION: RICHMOND, 37°55'22.12651"N, 122°22'04.64358"W
4. VERTICAL DATUM: MLLW, U.S. SURVEY FEET
5. VERTICAL CONTROL: NOAA TIDE STATION 9414816; BENCHMARK "YACHT 1947", ELEVATION 10.99'
6. THIS SURVEY REPRESENTS GENERAL CONDITIONS AT THE TIME OF THE SURVEY.
7. POSITIONING AND MOTION DATA WAS COLLECTED USING AN TRIMBLE MPS POSITIONING SYSTEM
8. SOUNDINGS WERE COLLECTED USING AN R2SONIC 2020 OPERATING AT 400 KHZ.

DRAFT

COWI
555 12TH STREET
STE 1700
OAKLAND, CA 94607
510-839-8912
cowimailbox@cowi.com

eTrac Inc.
637 LINDARO STREET
SUITE 100
SAN RAFAEL, CA 94901
415.462.0421
eTracInc.com

SURVEY DATE: MARCH 7, 2024	PLOT DATE: MARCH 12, 2024
DESIGNED BY: JAK	CHECKED BY:
REVISION #	
FILE NAME: COWI_20240307_BerkeleySailingBasin.dwg	

BERKELEY SOUTH COVE SAILING BASIN HYDROGRAPHIC SURVEY

PROJECT INFORMATION

Reference Number: S1

From: David Schneider
To: Tomerlin, Ashley@BCDC; mayor@cityofberkely.info; SFerris@berkeley.ca.gov; bblackaby@berkeley.ca.gov
Subject: Fwd: OPPOSING Berkeley Marina Parking Fees
Date: Monday, October 27, 2025 8:25:38 AM

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---------- Forwarded message ---------
From: **David Schneider** <dls6956@gmail.com>
Date: Mon, Oct 27, 2025 at 8:21 AM
Subject: OPPOSING Berkeley Marina Parking Fees
To: <aishi@berkeleyca.gov>, <rkesarwani@berkeleyca.gov>, <bblackaby@berkeleyca.go>, <itregub@berkeleyca.gov>, <ttaplin@berkeleyca.gov>, <SFerris@berkeleyca.go>, council@cityofberkeley.info <BMASP@cityofberkely.info>, <RMiller@cityofberkeley.info>, <ashley.tomerlin@bcdc.ca.go>

Please note Over 550 letters were sent to council opposing marina parking fees in the south lots. People of all socioeconomic levels use the space for coastal access and recreation. BAD. IDEA

Sincerely,
Dr David Schneider
Optometrist

From: meryl siegal
To: Tomerlin, Ashley@BCDC
Cc: Camille Antinori
Subject: Regarding parking fees at public waterfront in berkeley
Date: Tuesday, October 28, 2025 1:40:29 PM

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FYI - Oppostion letter sent to council yesterday.

meryl siegal <merylsiegal@gmail.com> Mon, Oct 27, 9:44 PM (15 hours ago)

to mayor, Igor, Adena, Rashi, bblackaby, Terry, Scott, C, BMASP, Berkeley, Roger, bcc: Camille

Dear Mayor, CM Tregub and CM Kesarwani,

Please do not charge for the public use of the waterfront. The waterfront is a place where D1 and D2 people can easily access, otherwise, there is little place to recreate.

Importantly, the waterfront allows everyone, and especially families to have a low cost way to get out and enjoy open public space. The waterfront is and needs to remain a truly equitable place of enjoyment in Berkeley.

Over 550 letters were sent to council opposing the marina parking fees in the south lots. I remain opposed to parking fees and hope you, too, remain opposed. I urge you to please rethink the wasteful idea to charge for parking at a PUBLIC AMENITY.

Thank you for considering the important issue of low cost recreation in Berkeley.

Sincerely,

Meryl Siegal

D1 resident

From:	Gordon Stout
To:	Adena; mayor@berkeleyca.gov; Kesarwani, Rashi; Brent; Igor; Terry; Ferris, Scott; BMASP; Miller, Roger; Tomerlin, Ashley@BCDC; Allan Abshez; All Council
Subject:	Berkeley Marina Paid parking
Date:	Monday, October 27, 2025 10:00:40 PM
Attachments:	Berkeley Marina Paid parking.pdf

You don't often get email from gords11@gmail.com. Learn why this is important

WARNING: This message is from an external source. Verify the sender and exercise caution when clicking links or opening attachments.

Please don't implement paid parking at the Berkeley Marina! It will keep away people who should be there, and degrade the experience of all who come there.

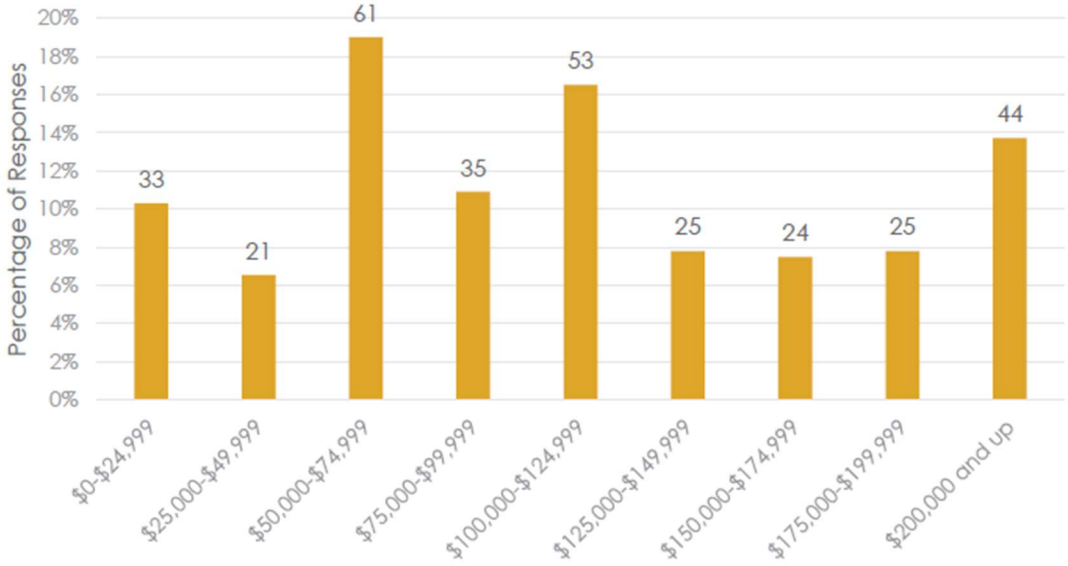
Gordon Stout

Paid Parking at the Berkeley Marina

Gordon Stout 10/27/2025

As part of their parking study, Kittelson conducted an Intercept Survey that asked about household income and frequency of trips to the Marina.

Figure 34: What is your approximate average household income?



Number of responses: 321
Source: Kittelson and Associates, Inc. 2024

Arithmetic: 33 respondents (33 / 321 = 10.3%) reported a household income of $25,000. From Figure 31, 130 respondents (130 / 447 = 29%) visit "a few times a week", let's say 3 visits per week. For eight good weather months (x 4 = 32 weeks) of the year, 3 visits/week x 32 weeks = 96 visits per year. If parking were set at $10 per visit, the parking for the 72 visits would be $960, a crazy expense on a $25K annual income. People would visit a lot less often, if at all.

What is Fair? When I windsurf in the South Cove, I see young families bringing kids to Adventure Playground or picnics to Shorebird Cove. I think about my mother, many decades ago, taking us kids to the Golden Gate Park Panhandle and the other nearby free city parks. I also think about my sister, who lived in Berkeley as a single mom, working as a waitress, vet tech and art teacher, raising two sons on a shoestring. Please don't ask people like my mom or sister to pay for parking at the Berkeley Marina or any other city park. People need parks to stay happy and healthy—don't raise up financial barriers to keep them away.

For the last ten years I have had a boat on J-Dock, and at ~$320 per month I have cheerfully paid the Marina about $38,400 for those ten years of slip fees. That actually makes financial sense for both the Marina and for me.

How much would it cost to collect the parking fees?

The original proposal for $6.00 per day in the South Cove lots was expected to generate $182,500 annually for the Marina Fund. Wow! That's an amazing amount of money!

Too good to be true, let's look at some other estimates:

From January 2022 Nelson/Nygaard study:

Table 1 Preliminary Nelson\Nygaard and City of Berkeley cost/revenue estimates

	NN Estimate	City Estimate
Annual revenue	$780,000	$550,000
Annual operating cost	$340,000	$550,000
Net annual revenue	$440,000	$0

The 2022 Nelson Nygaard table above shows two interesting sets of estimates:

Nelson Nygaard: Revenue $780,000, Operating cost $340,000, net, $440,000
Takes $780,000 from marina patrons, only delivers $440,000 to Marina Fund. Ooh—more plausible cost estimation, but very inefficient tax collection!

City of Berkeley: Revenue $550,000, Operating cost $550,000, net revenue, zero!
Completely inefficient tax collection—Sold your soul, got nothing in return!

From April 2, 2019 proposal for $10 parking fee:

"The cumulative impact of the new South Cove Parking Fee is estimated to add $26,000 in annual revenue to the Marina Fund (Fund 608). This revenue will offset the City's cost to collect the fee and maintain the parking lot. This fee is not expected to make a significant impact on the Marina Fund's $1M structural deficit and projected insolvency within the next two years."

Regardless of economics, paid parking will dramatically degrade the quality of time spent at the marina. Instead of sailing, walking, relaxing, and enjoying a magnificent place, there will be a constant push to figure out how to make do with expensive parking that just does not work. You see it in the suggestion, made recently by marina management, that people headed for the South Cove lots should drop off their gear (or their kids?), then go park up on Marina Boulevard, and walk back down. We need much better planning than this.

From: Maddie Williams
To: Tomerlin, Ashley@BCDC
Subject: Please keep Berkeley Marina Parking Free
Date: Tuesday, October 28, 2025 11:02:59 AM

You don't often get email from maddie.wsb1399@gmail.com. Learn why this is important

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To whom is may concern:

I am writing to express my opposition to the proposed parking fees at the Berkeley Marina and Waterfront. This is a poor plan for our community for several reasons:

Parking fees will make it financially difficult, if not prohibit low income residents and their families from enjoying the Berkeley Marina. The proposed parking fees do not support the diversity and equity to all people that Berkeley aspires to hold dear.

Parking fees should not place a financial burden on low income or disadvantaged visitors to fix the financial troubles of the Marina Fund.

Many visitors have no other option than to come by car due to bringing dogs, kids, equipment for sailing, wind/wing surfing, paddle boarding, fishing, and kayaking. Even if they were able to come by public transit the bus drops off almost a mile away from Cesar Chavez park.

The Marina fund has financial issues but it needs to attract more visitors, slip renters, businesses, and patrons for restaurants NOT deter people it hopes to attract by creating barriers.

To avoid parking fees, visitors will likely park in other free lots precluding the anticipated revenues.

Boat slip renters will likely move to other nearby marinas given the recent negative changes that affect them: all marina security personnel were recently laid off, slip fees are going up, and now they have to pay for parking. Less boat slip renters = less revenue = bigger marina fund problems.

I ask that the planning process be inclusive of all people. The Berkeley Marina is a rich, diverse public space utilized by recreationalists, environmentalists, commercial operators, and people throughout the Bay Area. Let’s make planning for its future—thoughtful, inclusive, and judicious.

Thank you for your attention to this important matter.

Sincerely,

Madison Williams

1*** Chaucer St, Berkeley 94702